

**Internal Revenue Service (IRS)
Memphis Internal Revenue Service Center (MIRSC)
Landscaping and Grounds Maintenance Services**

**Request for Proposal (RFP)
Number 2023H2-26-Q-00023**

NAICS: 561730

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Set Aside: 8(a) Competitive

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DESCRIPTION/SPECIFICATION/PERFORMANCE WORK STATEMENT

C.1. GENERAL INFORMATION/BACKGROUND

The intent of this contract is to obtain grounds maintenance service for the Memphis Internal Revenue Service/Enterprise Computer Center Campus (MIRSC), located at 5333 Getwell Road, Memphis, TN 38118, GSA Building Number TN0005ZZ ("Campus"), by means of a performance-based contract. The facility consists of grounds totaling 109 acres of lawn, trees, ponds (wet and dry), natural areas, roads, and sidewalks. As a performance-based contract, the requirements are stated in terms of desired results with associated quality standards. The contract shall consist of two major functional areas: Basic Services ("Basic Services") and Additional Services ("Additional Services"), collectively ("Services") as specified herein.

C.1.1 SCOPE OF WORK/OBJECTIVES

The Contractor shall provide all supervision, administrative and technical support, equipment, labor, management, materials, personnel, subcontractors, supplies, tools, transportation (except as expressly set forth as Government furnished), and shall plan, schedule, coordinate and assure effective completion of all services described herein.

C.1.2 OVERVIEW OF BASIC SERVICES

Basic Services (as defined in Paragraph C.2) shall be provided at a firm-fixed monthly price. The Contractor shall determine how often the work is to be performed, how much labor is needed to perform the tasks, what methods will be used to complete the job and which supplies, materials and equipment are needed to perform Basic Services. The Contractor shall submit to the Contracting Officer Representative (COR) a schedule of **monthly** grounds maintenance services for planning purposes within a timeframe mutually agreed upon (but no later than 30 days) after contract award and within five workdays prior to start of each option period (if exercised).

C.1.3 OVERVIEW OF ADDITIONAL SERVICES

Additional Services shall be ordered separately on an as-needed basis in accordance with contract terms. Additional Services will be authorized by fixed-price work order(s) based on fixed hourly rates established in the contract. Additional Services requirements shall be ordered through issuance of work orders by the Authorized Ordering Official.

There is no guarantee that any Additional Services will be ordered. Additional Services work orders shall be requested by the Government in writing **and shall not be diverted from daily productivity.**

A ceiling price for each of the contract line items for Additional Services will be established at time of contract award based on estimated amounts. The ceiling price for Additional Services for the base period will be funded at the time of contract award [subject to the availability of funds and thru modification(s) if necessary] and the ceiling price for Additional Services for option periods will be funded at the time the option is exercised [subject to the availability of funds and thru modification(s) if necessary]. The ceiling price shall not be exceeded without the Contracting Officer's (CO) prior approval. To exceed the ceiling price without prior approval will be at the Contractor's own risk. Adjustments (up or down) to the ceiling price for any contract line item for Additional Services shall be performed by the Contracting Officer through modification(s).

C.1.4. SCHEDULE AND NORMAL WORKING HOURS

The Contractor shall schedule and arrange work to cause the least interference with the normal occurrence of Government business and mission. Grounds maintenance (with the exception of herbiciding and mulching of the courtyards and unless otherwise notified), shall be performed between the hours of 6:00 AM to 7:00 PM, Monday through Friday except Federal holidays and other days the building is closed. Herbiciding and mulching in the courtyards shall be performed on Saturdays between the hours of 12:30 PM to 7:00 PM. However, Contractor's personnel shall enter building gate no later than 3:30 PM on Saturdays. Work delayed by causes beyond the Contractor's control and performed beyond normal duty hours and/or non-scheduled days shall be performed at no additional cost to the Government. Examples: Federal holidays, inclement weather, extended power outages.

The Enterprise Computer Center (ECC), which includes the MIRSC, operates 24 hours 7 days a week, and the Government's primary operation at the MIRSC is conducted on day and night shifts, encompassing the hours of 6:00 AM to 3:30 AM Monday through Friday, except Federal holidays or any other day(s) designated by Federal Statute, Executive Order, or Presidential Proclamation. The ten Federal holidays at the Campus include New Year's Day, Martin Luther King Day, President's Day, Memorial Day, Independence Day, Labor Day, Columbus Day, Veterans Day, Thanksgiving Day, and Christmas Day.

C.1.5. PROJECT MANAGEMENT/SUPERVISION

The Contractor shall provide sufficient onsite project management and supervision as is essential to carry out all the terms and conditions of this contract. The Supervisor(s) shall be present onsite at all times when work is being performed and be available to interact with either the CO or the COR as needed. The Project Manager(s) shall oversee the overall operation under the contract and be available to interact with either the CO or the COR as needed. Five workdays after contract start, the Contractor shall provide to the COR the name, location, and telephone number of the Project Manager(s) and Supervisor(s) specifically designated for this contract. The Project Manager(s) and Supervisor(s) must be fluent in reading, writing, and speaking English.

Internal Revenue Service (IRS) employees are not authorized to exercise either direct or indirect supervision over the Contractor's employees.

C.1.6 OTHER INFORMATION

- a. Additional information for performance of Services shall be provided upon request.

The data provided in the documents above are estimates only, and the Contractor is responsible for verifying information.

- b. The Contractor shall utilize methods (such as latest innovation, technology, etc.) that are most efficient in performing the grounds maintenance for the facility.
- c. The Contractor is responsible for providing personal protective equipment to employees and ensuring that the appropriate attire is worn.
- d. The Contractor shall provide and implement an effective Quality Control Plan (QCP), conforming to quality requirements.
- e. The Contractor shall reduce the environmental impacts of work performed under this contract by using, to the maximum extent, environmentally sound practices, processes, and products.
- f. The Contractor shall keep the COR informed of current status of the work being performed, through provided work schedules and any other pertinent information.
- g. The Contractor shall give an updated listing of Ground Maintenance Inventory.
- h. The Contractor shall give an updated listing of types of trees, shrubs, and flowers.

C.2 DEFINITIONS / ACRONYMS / ABBREVIATIONS

As used throughout this contract the following terms shall have the meaning set forth below and specified as applicable to this contract.

C.2.1 GENERAL DEFINITIONS

- 1) **Acceptable Quality Level (AQL)** - The standard at which service is considered satisfactory as agreed upon by the Contractor and Government.

- 2) **Additional Services** – Services intended to satisfy the Government's short term, non-recurring need on an as-needed basis at fixed priced work orders based on established fixed hourly rate.
- 3) **Alternate Dispute Resolution (ADR)** – Process for the resolution of disputes regarding work determined to be unsatisfactory.
- 4) **Basic Services** – Those recurring services provided at the facility as defined in this contract.
- 5) **Contractor** - The term Contractor as used herein refers to both the prime Contractor and any subcontractors. The prime Contractor shall ensure that subcontractors comply with the provisions of this contract.
- 6) **Contract Work Inspector (CWI)** - An individual designated to be responsible for conducting inspections of the building and grounds to determine Contractor's compliance with terms and conditions of the contract.
- 7) **Contracting Officer (CO)** - One with the authority to enter into, administer, and/or terminate contracts and make related determinations.
- 8) **Contracting Officer's Representative (COR)** – One who is designated and authorized in writing by the CO to be responsible for surveillance/monitoring of the Contractor's performance.
- 9) **Contractor Owned Property** – All property owned or furnished by the Contractor.
- 10) **Contractor Representative/Project Manager** – An onsite foreman or superintendent assigned by the Contractor to manage the project.
- 11) **Defective Service** - A service output that does not meet the standard of performance associated with it.
- 12) **Government Owned Property** – All property owned by or leased to the Government or acquired by the Government under the terms of the contract. Government property includes both Government-furnished property and Contractor acquired property as defined in FAR 45.101.
- 13) **Performance Requirements** – Works to be performed by the Contractor.
- 14) **Performance Requirements Summary (PRS)** – An outline of contract requirements that identifies the key service outputs of the contract that will be inspected/surveilled by the Government, and related performance

standards, method(s) of performance assessment and surveillance, and portion of required service to total contract value.

- 15) **Performance Standard** – The desired results, expressed by the Government, expected from performance of contract services, to satisfy the requirement.
- 16) **Quality Assurance (QA)** – Those actions taken by the Government to assure services meet the acceptable quality level established in the contract.
- 17) **Quality Assurance Surveillance Plan (QASP)** – An organized written and “living” document outlining the Government’s methodology for monitoring and documenting Contractor performance.
- 18) **Quality Control (QC)** – Those actions taken by the Contractor to ensure Contractor performance meets the requirements of the contract.
- 19) **Response Time** – The time allowed the Contractor after initial notification of a work requirement to be physically on the premises at the worksite, with appropriate tools, equipment, and materials, ready to perform the work required.

C.2.2 DEFINITIONS THAT APPLY TO GROUNDS MAINTENANCE

- 1) **Debris** – Includes, but not limited to, man-made items, i.e., paper, cans, and bottles; and biodegradable items, i.e., limbs and branches, mud, pine straw and pinecones, mulch, leaves, rocks, and similar items.
- 2) **Diameter at Breast Height (DBH)** – As measured, 4.5 feet above ground level.
- 3) **Environmental Protection Agency (EPA)** – The Federal agency delegated authority to enforce the Federal Insecticide, Fungicide and Rodenticide Act (FIFRA).
- 4) **Grounds Maintenance** – Represented by healthy, evenly cut green grass, neatly edged, free of weeds and debris, and an overall appearance of well-manicured grounds; beds maintained weed-free with healthy, correctly pruned, fertilized, mulched plants and healthy flowers; straight standing, healthy trees free of insects and disease.
- 5) **Irrigation** – Involves the artificial application of water to promote proper health, growth, color, and appearance of cultivated vegetation. RAINBIRD irrigation system is installed at the facility.

- 6) **Parcel** – A given area of land.

C.2.3 ACRONYMS

AQL - Acceptable Quality Level
CLIN - Contract Line-Item Number
COR - Contracting Officer's Representative
EPA - Environmental Protection Agency
FAR - Federal Acquisition Regulation
GFP - Government Furnished Property
SDS - Safety Data Sheet
OSHA - Occupational Safety and Health Administration
PRS - Performance Requirement Summary
O&M - Operations and Maintenance
QA - Quality Assurance
QASP - Quality Assurance Surveillance Plan
QC - Quality Control
QCP - Quality Control Plan
SF - Square Foot

C.3 GOVERNMENT FURNISHED PROPERTY (GFP) AND SERVICES

The Government shall provide the Contractor with the Government furnished items (in an "as-is" condition). The use of GFP for purposes other than official Government business in performance of work under this contract is prohibited.

C.4 CONTRACTOR FURNISHED ITEMS

Except for the property and services referenced in Paragraph C.3, the Contractor shall provide all facilities, equipment, materials, and services to perform the requirements of this contract. After work requirements have been accomplished each day, all contractor equipment used for Services shall be removed from the worksite.

C.5 QUALIFICATIONS OF PERSONNEL

Contractor shall have a fully trained staffed on the first day of contract performance and be prepared to maintain a fully trained staff throughout the life of the contract. All personnel shall be fluent in reading and speaking the English language.

C.5.1 QUALIFICATIONS OF PROJECT MANAGER(S)

The Project Manager(s) shall possess 1) a minimum of three years' experience within the last six years managing facilities of similar magnitude and scope of the total requirement of the contract, and 2) a Certification of Training in this career field. Once approved to serve as Project Manager, the Project Manager shall not be changed without the written approval from COR. If designated Project Manager can no longer

serve as Project Manager, a résumé of the proposed new Project Manager shall be submitted to the COR. COR shall review the résumé within ten business days of receipt of résumé and inform Contractor of approval or disapproval of Project Manager. If disapproved, COR shall identify rationale for disapproval. This process shall continue until a new Project Manager is approved.

C.5.2 QUALIFICATIONS OF SUPERVISORY EMPLOYEE(S)

The Contractor shall employ competent supervisory personnel capable of training employees on methods of accomplishing the work performance and quality standards in this contract. The Supervisor(s) shall have experience with performance based and quality control processes, procedures, supplies, and equipment. The Supervisor(s) shall, at a minimum, have completed a supervisory training course for this type of work and have prior grounds maintenance supervisory experience in similar size facilities. The on-site supervisor(s) is required to be fully conversant in English. The COR shall be notified within two business days if there is a change in the supervisory personnel. Résumé of the new supervisory personnel shall be submitted to the COR within five business days to be kept in COR's contract file. Government reserves the right to approve/disapprove supervisory personnel.

C.5.3. QUALIFICATIONS OF OTHER CONTRACT PERSONNEL

The personnel employed by the Contractor shall be capable, trained and qualified in performing grounds maintenance type work. All employees must be fully conversant in English. Additionally, all personnel employed to perform Service shall undergo training of the IRS emergency procedures in the event of emergencies. The training shall be coordinated with the COR. Contractor shall submit an Emergency Procedures Plan to the COR ten (10) workdays after start of contract performance, and annually thereafter. The plan shall include, at a minimum, how employees will respond to emergency procedures in case of emergency, how Contractor will communicate with employees in case of an emergency, and who the Government shall contact to inquire if all employees are accounted for. The plan shall be filed with the COR's contract file.

C.6 ENVIRONMENTAL/SAFETY REQUIREMENTS

General Requirements

The contractor, its employees and any subcontractors shall adhere to all Occupation Safety and Health Administration (OSHA), Environmental Protection Agency (EPA) and applicable state and local environmental, health and safety rules and regulations. The Memphis Service Center has established environmental, health and safety management requirements and procedures and requires all contractors to comply and participate with such plans and procedures.

The contractor shall notify the Government in writing of any changes necessary in supplies, procedures, or practices in order to comply fully with said rules, regulations or laws.

The IRS conducts unannounced Environmental Health and Safety (EHS) inspections throughout IRS workspaces, including operational areas. IRS maintains the right to stop any work where there is an immediate and serious threat to the safety and health of contractors or IRS employees or a serious threat to the environment. Inspection findings will be forwarded to the COR. If, during the contract, IRS personnel note any situations of non-compliance with federal, state, or local regulations, the contractor's environmental and safety program/plan or IRS EHS policies and requirements, IRS personnel will verbally bring them to the attention of the CO and/or COR and will immediately follow up in writing. The abatement and any associated cost of violations shall be the responsibility of the contractor and/or the Government as determined by the CO with input from the COR and contractor.

Training Requirements

The contractor shall submit a training plan that includes but is not limited to the following required OSHA training topics: Hazard Communication; Personal Protective Equipment to be used; Hazardous Energy Control (lockout/tag/out) for affected employees. Training records for all employees working on the contract shall be submitted to the COR within 30 days of the contract.

Safety Data Sheets (SDSs)

The Contractor shall maintain a set of two binders of the SDSs for chemicals to be used on site, to include gasoline, lubricant oils, and pesticides. One binder will remain with the COR and the other with the facility's senior safety officer. Materials or supplies shall not be used in performance under this contract or placed/stored on Government property until the applicable Safety Data Sheets (SDSs) have been submitted to the COR, for approval, and filed in the appropriate SDS binders.

Personnel Safety

Safety for all personnel stationed at or visiting this facility is the primary concern of the Government. The contractor, Project Manager (PM), supervisors, employees and sub-contractors shall always, take the immediate necessary action(s) to protect all personnel from any spills of non-hazardous materials (water, food, beverages etc.), tripping hazards, water, snow, or any other task. The contractor's employees shall take immediate actions to clean, treat, wipe up, rope off or otherwise take control of any situation that endangers the health or safety of the occupants of this facility. The contractor's employees shall notify the COR, Custodial Work Inspector (CWI), the Building Manager, Security Guards or PM as quickly as possible that such a condition exists (any spill encountered that is not identifiable as non-hazardous must not be touched and immediately reported to the COR, Facility Safety Officer, and the Building Manager for instructions).

Personal Protective Equipment

The contractor shall assess potential hazards associated with each type of tasks employees will be performing and provide all contractor personnel with the appropriate

personal protective equipment (PPE) required by OSHA or any other state or local laws/regulations including, but not limited to hand, foot and eye protective equipment.

Use of Chemicals

All chemicals brought on site to perform work including gasoline, oil, and pesticides. Shall be removed at the end of the day. Nothing can be stored at the facility property. All waste produced by contract activities shall be removed and disposed of in accordance with federal, state, and local regulations.

Environmental and Air Emissions

The contractor shall not cause any air emissions that would be subject to environmental permitting or control requirements. The contractor shall control emissions from activities on-site in accordance with the federal, state and local requirements.

The Contractor shall be responsible for all fines, fees, citations, etc., due to negligence that results in environmental or safety related issues.

Environmental/Safety Fines

The contractor shall be responsible for all fines, fees, citations, etc., due to negligence that results in environmental or safety related issues.

The Contractor shall take every precaution to ensure that if available, only safe and environmentally preferable products are used. Preference shall be given to products that meet the following: United States Department of Agriculture (USDA) - designated bio-based products, Green Seal Certified Products, Comprehensive Procurement Guidelines (CPG), and/or applicable Executive Orders.

BIO-BASED PRODUCTS/SERVICES

The Government requires products used and performed on its facilities to be Bio-based products. These products shall be commercial or industrial products that are composed in whole, or in significant part, of biological products or renewable domestic agricultural materials or forestry materials.

BIOBASED PRODUCT REPORTING

The Contractor shall provide the required Biobased purchasing data using the United States Department of Agriculture (USDA) online reporting tool annually (Attachment 2) before October 30th. The reporting tool can be found at:

<http://www.biopreferred.gov/FARReporting/FARReporting.xhtml>. The

list of Biobased products can be found at:

<http://www.biopreferred.gov/ProductCategories.aspx>

The Contractor is responsible to keep current on additional Biobased products designated by the USDA and available for use in the performance of this Contract.

Additional information can be found at www.biopreferred.gov. The necessary reporting templates and step by step instructions are included in Attachment 1 and Attachment 2.

C.7 QUALITY CONTROL

The Contractor shall establish a comprehensive Quality Control Program as described below to assure the requirements of the contract are provided as specified.

C.7.1 QUALITY CONTROL PLAN (QCP)

The Contractor shall submit a copy of its Quality Control Plan (QCP) to the COR for review and approval within a time period mutually agreed upon (but no later than 30 days). The basic tenet of the plan is that the Contractor is responsible for quality control. All methods, procedures, and forms shall support this concept. The Contractor may not begin work until its QCP has been approved by the COR. The QCP shall address/include, at a minimum, the following:

- a. An inspection system that is tailored to the specific grounds covered under the terms of the contract, and which covers all services specified in the contract.
- b. A system for identifying and correcting deficiencies in the quality of services before the level of performance becomes unacceptable and/or the Government inspectors point out the deficiencies.
- c. A system to ensure that the Contractor's employees are notified of deficiencies found in their areas of responsibility; that the noted deficiencies are corrected (if possible); and that these employees are counseled/retrained as necessary to ensure that deficiencies do not recur.
- d. A system that provides for Government access to all Contractor documentation, reports, and files (to include any forms on which quality control inspections are documented) with respect to Contractor quality control inspections and any corrective actions taken.
- e. How the Contractor's corporate/home office will provide contract support, services and controls.
- f. The identity of all personnel who will be performing QCP inspections by name, title, and type of inspection are authorized to perform. Note: The person designated to perform the work inspection shall not perform Quality Control Inspections.

The COR will return, within three (3) business days of receipt by the Government, the QCP to the Contractor approved or requiring revisions/corrections by the Contractor. If revisions/corrections are required, the Contractor shall resubmit its QCP within five (5) days of receipt from the COR with the requested revisions or corrections.

Revisions/corrections, if any, to the Contractor's QCP during the life of the contract shall be made in these specified timeframes respectively. The Contractor shall not implement any change to its QCP prior to review and approval by the COR.

C.7.2 QUALITY CONTROL (QC) INSPECTIONS

In addition to the IRS' inspections, the Contractor shall perform its own Quality Control Inspections by qualified personnel (i.e. personnel being sufficiently knowledgeable of all technical aspects covered under this contract which would allow identification/discovery of improperly performed services). The documentation must be signed and dated by the inspector at the time the inspection is completed. All completed inspection reports shall be available to the COR.

C.7.3 IRS/CONTRACTOR MEETINGS

The Contractor or Contractor Representative(s) and COR shall meet at least monthly, or as often as the COR determines to be necessary, to discuss contract performance, identify and resolve all problems, and keep lines of communication open. A mutual effort shall be made to resolve all problems identified during these meetings, e.g., effectiveness of quality control; corrective action plans; proposal submittals for extra services; management of subcontractor(s) if applicable; problems impacting overall contract performance/service delivery, etc.

C.8 QUALITY ASSURANCE

The Government will assure quality services through its Quality Assurance Surveillance Plan (QASP). Government reserves the right to make adjustment to its QASP as deemed necessary and without concurrence from Contractor.

C.9 QUALITY REQUIREMENTS – BASIC SERVICES

All the area inside the perimeter fence and a distance of 10 feet outside the fence shall be covered by this contract. Services to be provided as Basic Services and defined standards for each of the processes involved are listed in Paragraph C.1.2. An inventory of grounds to be maintained shall be provided. Grounds Maintenance Inventory, and a listing of types of trees, plants and flowers to be planted and maintained shall be provided that list types of trees and flowers.

C.9.1 OBJECTIVES

Services shall be performed by the Contractor on a continuous cycle to maintain evenly cut grass, neatly edged, free of weeds and debris; weed-free beds of healthy, correctly pruned, fertilized, cultivated, mulched plants and flowers; straight standing, mulched, healthy trees free of insects and disease; and grounds free of leaves, pine cones, needles, straw, and other debris. Grounds shall reflect an overall well-manicured

appearance, maintained in a manner that prolongs life and sustains a healthy appearance.

C.9.2 SERVICES INCLUDED

The Contractor shall maintain all plants, trees, shrubs, ground cover, and lawns in a manner that prolongs life and sustains a healthy appearance. The Contractor shall seek to prevent pollution by, among other things, minimizing runoff. The following services shall be included in Basic Services: Grass cutting; edging; plant and shrub pruning; cultivation and mulching; fertilization; weed eradication; ditch/curb cleaning; fence line maintenance; raking; irrigation; grassing up to ten square feet; insects, pests diseases, and wildlife control and removal; and installation of “color”. Defined standards for each of the processes involved are as follows.

C.9.2.1 GRASS CUTTING

All grass areas shall remain at a uniform height not to exceed 4 inches. Grass cutting is to be accomplished free of scalping, rutting, bruising, and uneven and rough cutting. No grass trimmings shall be left in any of the beds or in the courtyards. Sidewalks shall be free of any resulting dirt and debris. Contractor shall ensure lawn mowers are powered off when traveling through building connections to courtyards/atriums.

Trimming operations (including with herbicides) shall be considered a part of grass cutting and shall be accomplished concurrently (same day) with grass cutting operation. Grass cutting will not be considered complete until all trimming operations are accomplished. Trimming operations shall not damage trees and shrubs. Trees, shrubs, flowers, or areas of grass which are killed or damaged as a result of the Contractor’s work shall be replaced or repaired by the Contractor at no cost to the Government. Any branches that are growing outside the property boundaries shall be trimmed back so they do not hang over the fence line. Branches and/or vines shall not be permitted to grow through or be tangled in the fence wire.

C.9.2.2 EDGING

All sidewalks, driveways, street edges, curbs, and other paved areas shall be edged to maintain a clear zone immediately adjacent to the paved surface. Edged lines shall be neat and clean, providing a clear zone half inch wide by one inch deep, free of scalping, rutting, bruising, and uneven and rough cutting. Contractor shall be responsible for any damage done to the concrete during the edging process.

In conjunction with the performance of edging, all vegetation shall be removed from expansion joints and cracks in all paved surfaces, including sidewalks and parking lots in the parcel being edged.

C.9.2.3 PLANT AND SHRUB PRUNING

Prune or remove growth in front of windows, over entranceways or walks, around light poles, and in areas where vision is obstructed at street intersections. If an entire plant should die, Contractor shall remove the entire plant, including ground roots below ground level to a depth so as to avoid unnecessary soil excavation and ground disruption. If the hole is in a lawn area, the hole and any other surface damages caused by removal of the plant and/or shrub shall be grassed. If the hole is not in a lawn area, it shall be filled with topsoil and the surface prepared to match the surrounding surface.

Contractor shall notify the COR in writing no later than the next business day of the type and location of dead plant(s) removed. Replacement of dead plants [not caused as a result of the Contractor's performance] will be accomplished as "Additional Services" as requested by the COR.

Shrubs, hedges, trees, and cultivated plants (excluding flowers) shall be pruned to:

- A. Remove new growth to evenly form and balance the plant in order to shape it to its natural growth habits.
- B. Remove dead, damaged or diseased wood; and
- C. Remove vines, tree sprouts, ground cover, or any other extraneous vegetative growth from under or on the plant.

C.9.2.3.1. Tree Pruning

All tree pruning shall be accomplished under the supervision of a certified tree worker or arborist (furnished by the Contractor) who is trained, experienced, and otherwise qualified in proper tree pruning techniques. A copy of the certification shall be provided to the COR five (5) calendar days prior to initiation of any tree pruning. Trees shall be pruned to evenly form and balance the tree, promote proper health and growth, to respond to damage inflicted by natural or human causes, and to prevent interference with pedestrian and vehicular traffic. Trees shall be pruned in accordance with the following guidelines to selectively remove unwanted growth and encourage trees to grow or respond in a desired manner:

- (1) Remove dead, damaged, or diseased wood or structurally weak limbs that may cause a safety hazard or unsightly appearance, including the removal of dead palm fronds.
- (2) Remove branches that extend over building and endanger roofs, eaves, and windows; obstruct lighting from poles; or hang within 8 feet vertically over sidewalks, parking lots, and driveways.
- (3) Provide clearance for buses, moving vans, and similar vehicles along streets.
- (4) Cut back branches that overhang or grow into power lines. Anticipate the effects of wind on branches that might fall on power lines and cut back accordingly. Shape the entire tree rather than notch the top.
- (5) Remove growth of small trees in front of windows, over entranceways or walks, and those that will obstruct vision at street intersections.

- (6) Remove sprouts that grow from the trunk. Remove sprouts to the height of the first major lateral limb.
- (7) Branch stubs shall not be allowed. All branches shall be pruned (removed) back to the next major limb or the tree trunk. Pruning cuts shall be performed in a manner that leaves the branch collar exposed (with no stub beyond the branch collar).

C.9.2.4. CULTIVATION AND MULCHING

Shrubs, hedges, and flowerbeds shall be cultivated and mulched as necessary to maintain a healthy and well-groomed appearance. Mulch shall match throughout the property and shall be free of foreign material. Mulch shall be applied in appropriate amounts, for example, two-to-three-inch layers over well-drained soils, and thinner layer on poorly-drained soils. All bed edgings shall be realigned as needed. Mulch shall be applied out to the tree's drip line (if possible) and not piled against the tree trunk. The appearance of mulch ring shall resemble that of a "donut", not a "volcano".

Note: Mulch is to be applied to courtyards on weekends or other non-work IRS day, as approved by COR.

C.9.2.5 FERTILIZATION

The Contractor shall ensure that correct soil conditions are maintained for each tree, shrub, flower, grass or plant in order to promote optimum growth, correct environment, and obvious good health for the species of plant, e.g., grass shall be of a lush, green color.

Fertilizer used shall be of a balanced type that contains the appropriate nutrients and shall not be offensive to the smell. Fertilizer shall be delivered in the original, unopened containers bearing the manufacturer's chemical analysis, name, trade name, trademark, and indication of conformance to state and federal laws. In lieu of containers, fertilizer may be furnished in bulk if accompanied by a certificate indicating the above information with each delivery.

C.9.2.6 WEED ERADICATION

All areas of the property, including parking areas or paved walkways around the building, and ponds (wet or dry), shall be free from all weeds, wild onions and other foreign grasses at all times during performance on this contract. If plant(s), tree(s), etc. damaged or killed as a result of Contractor's performance, Contractor shall replace the plant(s) and/or trees(s) with equal species and size, at no additional cost to the Government.

Contractor shall adhere to the following when using herbicides:

- (1) Control Methods. The Contractor shall utilize only herbicides registered by the EPA and applicable state lead agency for the use intended. Within thirty (30)

calendar days after award of the contract, and ten (10) calendar days thereafter, prior to introducing a herbicide for usage, the Contractor shall submit the SDS to the COR for each herbicide intended to be used. Use shall be in strict compliance with label directions for the control of the target weeds. Any proposed changes in approved herbicide usage shall be submitted to the COR, along with documentation of EPA approval, at least five working days in advance of the anticipated need.

- (2) Herbicide Use Records. The Contractor shall maintain records of all herbicide usage on a contractor provided form. This form shall be filled out as weed control operations are performed and provided to the COR within five (5) work days upon request.
- (3) Herbicides shall be applied in courtyards on weekends or other IRS non-regular workday, as approved by COR.

Extreme care shall be exercised to avoid entry of herbicides into drainage structures, streams, ditches, etc. All work shall be in accordance with federal, state, local, and installation laws and regulations. Contractor shall be responsible for obtaining all applicable licenses/permits, and Contractor shall provide to the COR, within one (1) business day upon request, proof of current license from the State of Tennessee for each person performing vegetation/weed control on this contract.

C.9.2.7 DITCH/CURB CLEANING

All ditches, inlets, outlets, and culverts shall be cleared of sediment, vegetation, and debris to allow unrestricted flow of water.

C.9.2.7.1. Natural Area Cleaning

All natural areas shall be cleared of all debris to include fallen limbs and branches that will be cut and disposed in such a manner that damage will not occur to the tree, other trees, or improvements. Hanging limbs / branches shall be pruned in accordance with C.9.2.3.1.

C.9.2.8 FENCE LINE MAINTENANCE

Fence line maintenance shall provide security effectiveness as well as aestheticism. No branches or vines shall exist in or extend over the fence less than twenty feet high. There shall be no deep ruts or holes under or at the fence line at any time. The fence line requirements include an area extending ten feet outside the fence, and ten feet inside the fence. Grass, weeds, trees (less than three inches in diameter at ground level), and all other vegetative growth to ground or pavement level shall be eliminated within ten inches on both sides of fence through a method to avoid erosion. Residue of work generated by fence line maintenance shall be removed and disposed of off the property the same day.

C.9.2.9 RAKING

The Contractor shall remove leaves, pine straw and pinecones, limbs, and all other debris from the raked area to maintain a neat and clean appearance. All debris shall be disposed of off the property the same day raking occurs. Throughout the year, the Contractor shall remove minor accumulations due to isolated leaf drop and shall check all storm drain openings on the premises and remove any accumulated leaves or debris. Care shall be taken to remove leaves in existing mulched areas to maintain a neat and clean appearance

C.9.2.10 IRRIGATION

The Contractor shall regulate irrigation of grassed areas, shrubs, trees, flowers, and ground cover plants in accordance with their needs. The Contractor shall coordinate with the Operations & Maintenance (O&M) contractor, who is responsible for operation and maintenance of the Rainbird Irrigation System, in developing a watering schedule. Contractor shall ensure that irrigation requests are the amount necessary to preserve healthy plant life throughout the Campus.

The watering schedule for the upcoming growing season shall be established by a person on the Contractor's staff who has training on the Rainbird Irrigation System and submitted to the COR prior to April 15th of each year. The Contractor shall apprise the O&M contractor on a continual basis, (copying the CORs for this contract and O&M Contract) advising of changes that need to be made, e.g., more or less water in specific areas. Contractor shall inform the O&M contractor in advance of any scheduled service that could be hampered by the irrigation system being turned on in a specific area at other than scheduled times.

The Contractor shall inform the O&M Contractor (copying the CORs for this contract and O&M contract) of any instances of excessive quantities of water or rates of application which cause waste of water, erosion, run-off, or ponding. Irrigation operations shall be conducted in a manner and at time intervals to prevent the least disruption to employees. The Contractor shall be responsible for replacement of sprinkler heads, other equipment, or property damaged by its employees. Replacements shall be of the same make, manufacturer, and model, if available, as existing equipment or property. If the same is not available, the Contractor shall replace with an equal or better at no additional cost to the Government. The Contractor shall promptly report any damage to the COR.

C.9.2.11 GRASSING - UP TO TEN (10) SQUARE FEET

The Contractor shall ensure there are always no bare or thinning spots in the turf (up to 10 square feet) during performance on this contract. Contractor shall notify COR of any bare/thinning spots beyond ten square feet within one business day of noticing bare spots. Contractor shall grass and/or re-grass whenever necessary to maintain the uniform appearance of the turf. (See Additional Services Section C.9.3, Grassing, for maintenance beyond 10 square feet.) Contractor shall mark the areas in the property that are grassed and/or re-grassed on the day grassing /re-grassing is

performed. Grassed areas that fail to develop noticeable growth within three (3) weeks of grassing shall be re-grassed by the Contractor at no additional cost to the Government. Grassed areas that die within one (1) year after grassed or re-grassed shall be redone by the Contractor at no additional cost to the Government. Contractor shall coordinate with COR to ensure both parties are in agreement with dates areas are grassed and/or re-grassed.

C.9.2.12 INSECTS, PESTS, DISEASES AND WILDLIFE CONTROL AND REMOVAL

Contractor shall provide services necessary for the control, removal and eradication of insects, pests, and diseases throughout the exterior portion of the property to include the courtyards (with the exception of the following areas: termite bait stations, the outer foundation of the building, and the guardhouses) to ten (10) feet beyond the fenceline. This include, but is not limited to, moles, ants/ant hills, and pests and insects that feed on outdoor vegetation, raccoons, snakes, etc. (Service to the termite bait stations, the outer foundation of the building, and the guardhouses will be performed by the janitorial and pest control contractor.)

Contractor shall be responsible for the control of pests and diseases of the trees, shrubs, and plants, including but not limited to bagworms, and shall take immediate action to eradicate any such diseases or infestations that occur. Any diseases found should be noted on the Ground Maintenance Daily Report, with location and plan of treatment.

The Courtyards shall be free and clear of all wildlife (including but not limited to geese, ducks, birds) and animal droppings to the maximum extent possible. Removal of all wildlife shall be in accordance with all State and Federal Regulations. Contractor shall be responsible for obtaining all permit(s) required by the State of Tennessee or other government entities for the removal of wildlife.

Eradication programs shall be continuously in effect and there shall be no signs of infestations. Additional inspections and treatments shall be applied as required at no additional cost to the Government. Contractor shall respond to any complaints within 24 hours, or in case of an emergency such as swarming bees or any event that poses imminent danger, Contractor shall respond within fifteen (15) minutes.

A Pest Control Plan that covers all of the exterior property (with the exceptions of the areas noted above) shall be submitted within a timeframe mutually agreed upon (but no later than 30 days) after start of contract performance, and annually thereafter. The plan should detail proposed methods for control, removal, and/or eradication including labels and Safety Data Sheets for all chemicals to be applied, dates, amounts, locations, frequency, etc. and include a copy of the Pesticide Applicator Certificate or License for contractor's representative who will be performing on-site service under this contract. The plan shall also include mosquito breeding control measures for wet detention ponds, repellent measures for Mockingbirds, etc. Upon receipt of the Pest Control Plan, the COR will render a decision regarding its acceptability within ten (10)

working days. All pesticides used shall comply with the provisions of the Federal Insecticide, Fungicide, and Rodenticide Pesticide Control Act of 1972, Public Law 92516, and the regulations issued thereunder. Copies of all Safety Data Sheets shall be submitted to the COR for all pesticides used.

Contractor may use approved mechanical or electronic devices integrated with pesticides upon prior approval from the COR.

C.9.2.13 INSTALLATION OF “COLOR”

In the Spring and Autumn seasons, the Contractor shall plant flowers (annuals and/or perennials), add mulch, etc., as appropriate and as previously approved by the COR, in the beds provided at the following locations: main entrance sign on Getwell; circle outside Module E; entrances at Modules AB, BC, FG, GH, AJ and E; and the three courtyards. It is estimated that 2,100 flowers will be planted during the Spring season and 2,100 during the Autumn season. Planting shall take place at the appropriate time in order to ensure health and growth of the flowers. The Contractor shall coordinate with the O&M contractor to ensure that the planting occurs during the operable schedule of the irrigation system. The Contractor is responsible for maintaining the beds, ensuring they are weed-free and replacing any plants that die within a year, at no cost to the Government.

C.10 ADDITIONAL SERVICES

Performance of Basic Services works described herein in excess of the frequency established by the Contractor and Government will be considered Additional Services, and shall follow the ordering process described in Section C.10. Contractor shall not perform any Additional Services unless ordered by the Government. Additional Services does not include re-performance of works to correct previous unsatisfactory performance and shall be provided at the rates specified in the contract for Additional Services. The services described below are considered Additional Services and the quality requirements established shall be met whenever Additional Services are ordered by the Government.

C.10.1 TREE REMOVAL, INCLUDING STUMP AND ABOVE GROUND ROOT REMOVAL

Trees, including their stumps and above ground roots, shall be removed to a depth below normal ground elevation to avoid unnecessary soil excavation and ground disruption. All debris shall be disposed of off the property the day of removal. If in a lawn area, any stump hole and any other surface damage caused by removal, shall be grassed as specified herein. If the hole is not in a lawn area, it shall be filled with topsoil and the surface prepared to match the surrounding surface. The cost of all work shall be included in the price quote for tree removal.

C.10.2 FILLING HOLES

The Contractor shall fill holes in the lawn around the sprinkler heads and in other areas as holes are observed and/or as directed by the COR.

C.10.3 GRASSING BEYOND TEN (10) SQUARE FEET

The Contractor shall ensure there are no bare or thinning spots in the turf (beyond 10 square feet) at all times during performance on this contract. Contractor shall grass and/or re-grass whenever necessary to maintain the uniform appearance of the turf. Contractor shall mark the areas in the property that are grassed and/or re-grassed. Grassed areas that fail to develop noticeable growth within three (3) weeks of grassing shall be re-grassed by the Contractor at no additional cost to the Government. Grassed areas that die within one (1) year after grassed or re-grassed shall be redone by the Contractor at no additional cost to the Government. Contractor shall coordinate with COR to ensure both parties are in agreement with dates areas are grassed and/or re-grassed.

C.10.4 EROSION CONTROL

Soil erosion damages beyond that which grassing can control shall be repaired with appropriate soil type to return the area to normal ground elevation. If area adjoins a grassy area it shall be fertilized and seeded to blend in with the area. Repaired grassy areas shall be firmly established. Areas which again erode within one year from date of repair shall be repaired by the Contractor at no additional cost to the Government. (Contractor shall coordinate with COR to ensure both parties are in agreement with dates areas are repaired.) Erosion in pond areas may require installation of additional rip-rap of equal size to that in place.

C.10.5 UNDERBRUSH REMOVAL

All brush, weeds, and small trees (3 inches and below in diameter at ground level) shall be cut back to within 1 inch of ground level, removed from the property, and disposed of in accordance with standard commercial practices for industry. Any vegetation to be saved will be marked by the COR prior to starting work. Any debris generated from cutting underbrush or found in the area (e.g., limbs, dead trees, trash, etc.) shall be removed from the property and disposed of offsite in accordance with local ordinance or best commercial practices.

C.10.6 SEVERE SHRUB PRUNING

Severe pruning of shrubs shall consist of removal of all or a major portion of the total growth of the shrub. The extent of pruning will be indicated by the COR, but generally shall consist of pruning large shrubbery to a level approximately 1 to 3 feet above ground level. Debris resulting from the pruning process shall be disposed of off the property the

same day of pruning.

C.10.7 TREE AND SHRUB REPLACEMENT

To the extent possible, all tree and plant replacement(s) shall be those included known to do well in the tri-state area of West Tennessee, East Arkansas, and North Mississippi, and to blend with existing ones.

- (1) Trees – Trees established shall be compatible to the Southwest Tennessee area, and in accordance with the existing ones, with trunk diameters (measured 6 inches up from the ground) of at least 3 inches. Trees shall be planted in accordance with accepted horticultural standards, including fertilization, mulching, and watering.
- (2) Shrubbery – Shrubbery ordered shall be compatible to that of the Southwest Tennessee area, and shall be in accordance with the existing ones on the property of the one, three, or five gallon class size. Shrubs shall be planted in accordance with accepted horticultural standards, including fertilization, mulching, and watering.

All plants shall be nursery grown and shall bear certification indicating species, common name, and grade. Certification shall be submitted to the COR within ten (10) calendar days prior to installation. Plants shall be healthy, living specimens that are considered to be number one grade stock, and planting procedures shall be in accordance with accepted nursery standards. Contractor shall provide continuing care to ensure proper development of the replacement(s) [see note below]. All plants that die or fail to develop noticeable growth within one year of planting by the Contractor shall be replaced by plants of like size and type and at no additional cost to the Government.

Note: Replacement of trees and shrubs shall be performed under Additional Services; however, once replaced, the replacement(s) shall be included in the Grounds Maintenance Inventory for Basic Services maintenance.

C.10.8 INSTALLATION AND REMOVAL OF TREE SUPPORTS

Tree supports such as stakes, tree ties, and guide wires shall be installed as needed and monitored to straighten trees due to the unexpected high winds, etc. (Currently, some trees already have support installed). Tree supports shall be kept in good condition (i.e., free from rust and debris, no broken parts, etc.), function properly at all times, and removed at the appropriate time (i.e. not prematurely or too late) to prevent destruction to the tree. Guide wires shall not be removed prematurely from trees resulting in misshaping or death of the tree. Replacement trees and/or guide wires will be at the expense of the Contractor if the replacement is due to the untimely removal of tree at Contractor's discretion. To the extent possible, all replacement trees and plants shall be those included known to do well in the tri-state area of West Tennessee, East Arkansas, and North Mississippi, and to blend with existing ones.

C.10.9 MISCELLANEOUS SERVICES

Miscellaneous services consist of any services within the scope of the Contract required by the Government and not address in paragraphs C.9.1 through C.9.9. The ordering procedures for miscellaneous services shall be followed as outlined in Section C.10.

C.11. ADDITIONAL SERVICES ORDERING, PERFORMANCE, AND PAYMENT PROCEDURES

- a. Work identified as Additional Services is optional work that the Government may order on an as-needed basis. The Government makes no guarantee to order Additional Services work. A contract line-item ceiling price for Additional Services, which if exceeded by Contractor will be at its own risk, shall be established in the contract at the time of contract award, and shall be adjusted in writing by the CO through modification(s) if needed. The ceiling price for each line item for Additional Services is a cumulative total applicable to all individual work orders (as described in "c" below) placed by the Government under the terms of the contract.
- b. Authorized Ordering Official. The Contracting Officer's Representative, or other representative designated in writing by the Contracting Officer.
- c. Individual Work Order(s). A work order for the performance of Additional Services work shall be issued to the Contractor by the Authorized Ordering Official. The cumulative value of all individual work orders shall not exceed the contract line-item ceiling price established in writing by the Contracting Officer.
- d. Each work order will be issued in writing and contain, as a minimum, the following information:
 - 1) Individual Work Order Number;
 - 2) Applicable Contract Line Item Number;
 - 3) Date Of Order;
 - 4) Description of Work;
 - 5) Work Order's Firm-Fixed-Price;
 - 6) Scheduled Delivery/Completion Date; and
 - 7) Authorized Ordering Official's Name And Signature.
- e. Performance Schedule. An individual performance schedule for each work order shall be determined when services are requested and be included in the work order. Performance is to be mutually agreeable between the Ordering Official and contractor. The contractor has a responsibility to reasonably accommodate the government's need for completion within the required timeframe.

f. Verbal Orders. Verbal work order(s) may be issued in times of emergency ONLY (e.g. emergency conditions that threaten personnel, property, or MIRSC operations), when a written order cannot be issued to the Contractor timely. The Contractor and Ordering Official shall ensure a clear understanding of (1) the work to be performed; (2) work order ceiling price; and, (3) delivery/completion date. All verbal orders shall be confirmed in writing by the Ordering Official and acknowledged by the Contractor within 24 hours, or the next business day.

g. Payment. Firm-fixed-priced work orders will be paid in accordance with the Prompt Payment Act.

C.11.1 ORDERING PROCESS FOR INDIVIDUAL WORK ORDERS EQUAL TO OR LESS THAN \$3,000

- a. Authorized Ordering Official is authorized to order contract services up to \$3,000 per work order.
- b. Contractor shall submit a firm-fixed price quote to Authorized Ordering Official. Authorized Ordering Official shall evaluate price quote for price reasonableness determination through any methods appropriate. (Authorized Ordering Official shall negotiate a lower price if deemed necessary).
- c. Once price quote is determined fair and reasonable, Authorized Ordering Official shall issue a work order as described in Section C.11.d above.
- d. Upon completion of work, Authorized Ordering Official shall perform receipt and acceptance against the applicable contract line item number (CLIN) for Additional Services.

C.11.2 ORDERING PROCESS FOR INDIVIDUAL WORK ORDERS GREATER THAN \$3,000

- a. Only the Contracting Officer is authorized to approve individual work orders exceeding \$3,000.
- b. Contractor shall submit firm-fixed price quote(s) to Authorized Ordering Official. If any portion of work will be subcontracted, Contractor shall submit at least three (3) firm-fixed price quotes from at least three different vendors to Authorized Ordering Official, unless waived by the Contracting Officer). Authorized Ordering Official shall submit all quotes to CO. CO shall review each quote and select the quote that is most advantageous to the government. CO shall approve quote in writing to Authorized Ordering Official.

- c. Upon approval by CO, Authorized Ordering Official shall issue a work order as described in “d” of Section C.11 above.
- d. Upon completion of work, Authorized Ordering Official shall perform receipt and acceptance against the applicable contract line item number (CLIN) for Additional Services.

C.12 FEDERAL REQUIREMENTS

- A. The Contractor shall comply with all applicable Federal, state and local laws, regulations and codes, including any supplements or revisions. The Contractor shall obtain all applicable licenses and permits. The Government shall not be responsible for costs incurred by Contractor to obtain licenses and permits, etc.
- B. The Contractor shall use biobased and EPA-designated products for landscaping services.

Attachment # 1

FAR REPORTING CATEGORIES AND USDA DESIGNATED BIOBASED PRODUCTS (in accordance with FAR 52.223-2)

Federal Government Contract and/or Order Number	
Name of Vendor Contract Point of Contact:	
E-mail address of Contract Point of Contact:	
Contractor DUNS Number	
Category	\$ Amount Purchased
(USDA catalog is the authoritative source)	
Cafeteria/Food Services	
Dishwashing Products	
Disposable Containers	
Disposal Cutlery	
Disposable Tableware	
Food Cleaners	
Oven and Grill Cleaners	
Construction	
Asphalt Restorers	
Carpets	
Composite Panels – Acoustical	
Composite Panels – Interior Panels	
Composite Panels - Plastic Lumber	
Composite Panels – Structural Interior Panels	
Composite Panels – Structural Wall Panels	
Concrete and Asphalt Release Fluids	
Dust Suppressants	
Erosion Control Materials	
Floor Coverings (Non-Carpet)	
Fluid-Filled Transformers – Vegetable Oil-Based	
Interior Paints and Coatings – Latex and Waterborne Alkyd	
Interior Paints and Coatings – Oil-based and Solventborne Alkyd	
Plastic Insulating Foam for Residential and Commercial Construction	
Roof Coatings	
Water Tank Coatings	
Wood and Concrete Sealers – Membrane Concrete Sealers	
Wood and Concrete Sealers – Penetrating Liquids	
Wood and Concrete Stains	
Custodial/Janitorial/Housekeeping	
Adhesive and Mastic Removers	
Air Fresheners and Deodorizers	
Asphalt and Tar Removers	
Bathroom and Spa Cleaners	
Carpet and Upholstery Cleaners - General Purpose	

Carpet and Upholstery Cleaners – Spot Removers	
Concrete and Asphalt Cleaners	
Floor Cleaners and Protectors	
Floor Strippers	
Furniture Cleaners and Protectors	
General Purpose Household Cleaners	
Glass Cleaners	
Graffiti and Grease Removers	
Industrial Cleaners	
Ink Removers and Cleaners	
Laundry Products – General Purpose	
Laundry Products – Pretreatment/ Spot Removers	
Multipurpose Cleaners	
Hospitality/Lodging/Personal Care	
Bath Products	
Bedding, Bed Linens, and Towels	
Cuts, Burns, and Abrasion Ointments	
Foot Care Products	
Hair Care Products – Conditioners	
Hair Care Products - Shampoos	
Hand Cleaners and Sanitizers – Hand Cleaners	
Hand Cleaners and Sanitizers - Hand Sanitizers	
Lip Care Products	
Topical Pain Relief Products	
Landscaping	
Animal Repellents	
Compost Activators and Accelerators	
Fertilizers	
Mulch and Compost Materials	
Lubricants, Fluids and Greases	
2-Cycle Engine Oils	
Chain and Cable Lubricants	
Corrosion Preventatives	
Firearm Lubricants	
Forming Lubricants	
Gear Lubricants	
Greases	
Greases – Food Grade	
Greases – Multipurpose	
Greases – Rail Track	
Heat Transfer Fluids	
Hydraulic Fluids – Mobile Equipment	
Hydraulic Fluids – Stationary Equipment	

Metalworking Fluids -- General Purpose Soluble, Semi-Synthetic, and Synthetic Oils	
Metalworking Fluids – Straight Oils	
Multipurpose Lubricants	
Penetrating Lubricants	
Pneumatic Equipment Lubricants	
Slideway Lubricants	
Turbine Drip Oils	
Miscellaneous	
Candles and Wax Melts	
Films – Non-Durable	
Films – Semi-Durable	
Expanded Polystyrene Foam Recycling Products	
Packing and Insulating Materials	
Operations and Maintenance/Facilities Maintenance	
Bioremediation Materials	
Blast Media	
De-Icers – General Purpose	
Electronic Components Cleaners	
Parts Wash Solution	
Sorbents	
Printing (Contractor and Government)	
Inks	
Inks - News	
Inks - Printer Toner (Greater than 25 pages per minute)	
Inks - Printer Toner (Less than 25 pages per minute)	
Inks - Sheetfed (Black)	
Inks - Sheetfed (Color)	
Inks - Specialty	
Vehicle	
Diesel Fuel Additives	
Greases - Truck	

Attachment #2

Contractor Reporting of Purchases of Designated Biobased Products

Pursuant to a legislative mandate in the 2008 Farm Bill, prime contractors are required to report the category of product, type of product, and dollar value of all USDA designated biobased products that were purchased in the performance of Federal contracts. Federal contractors are required to report annual biobased product purchases made under their service and construction contracts. Based on the Federal Acquisition Clause 52.223-2, Affirmative Procurement of Biobased Products under Service and Construction Contracts, reporting of biobased product purchases is completed through a portal in the System for Award Management (SAM) <http://www.sam.gov>.

If a contract contains FAR Clause 52.223-2, the contractor must report all biobased purchases through SAM.

The Reporting Requirement(s):

- The reporting requirement became effective September 3, 2013;
- It applies to services and construction contractors where contracts have a FAR Clause 52.223-2 Affirmative Procurement of Biobased Products under Service and Construction Contracts, requiring the reporting of biobased product purchases;
- Contractors will report their purchases of biobased products to a reporting portal within the System for Award Management (SAM);
- Contractors will report the category, product type and dollar value of any USDA designated biobased products purchased by the Contractor; and
- Reporting must be completed by the end of October for the previous entire fiscal year (October 1 - September 30).

To Meet the Requirement(s) Contractors must:

- Access <http://www.sam.gov>
- Complete the required information within the portal and copy your Contracting Officer
- If the applicable contract is not accessible in SAM, the contractor should contact their Contracting Officer.

Actions to Take to Meet Reporting Requirement(s) by Contracting Officers:

- Require a copy of the reporting data from the Contractor as required in FAR Clause 52.223-2;
- Remind the contractor, as necessary, of the requirement to report BioPreferred product types and dollar value, if any, into SAM at <http://www.sam.gov>. This includes any BioPreferred products used in performing contract-related services or in delivering contract-related products;
- Complete the Federal Procurement Data System (FPDS) data element 8L - Use of Recovered Materials. This field must be completed when the Contracting Officer include the clause in the contract for biobased products. Please select the appropriate value from the drop down menu;

- The FPDS data element 8L prompts the requirement in SAM for the Contractor to report the biobased product purchases, as a result, it is imperative that the appropriate value in 8L drop down menu must be filled out correctly.

The new SAM portal includes:

- Instructions on how to complete the required information;
- A user's guide for BioPreferred reporting;
- Frequently Asked Questions (FAQs); and
- SAM Help Desk toll-free number: (866) 606-8220.

Attachment #3

1.0 Contractor Employee On-Boarding Requirements

1.1 Paperwork Completeness and Accuracy

- a. The IRS will provide the vendor POC with the Risk Assessment Checklist (RAC), along with other required investigative forms (details in section 1.5 below).
- b. All forms must contain the full legal name that matches the applicant's identification (e.g. state issued id, passport, etc.)
- c. Vendors should ensure fields requiring social security numbers and phone numbers have the correct number of digits.
- d. The IRS will reject forms that are incomplete, illegible, inaccurate, and contradict other forms in the package.

1.2 Contractor Eligibility

All contractor/subcontractor employees submitted for staff-like access approval must be eligible for IRS contract employment to the best of the vendor's knowledge. In order to be approved for interim staff-like access, IRS will confirm that contractor/subcontractor employees first meet the following initial eligibility requirements:

- 1.2.1 U.S. Citizenship or Lawful Permanent Resident (LPR) status: Subjects must be US citizens or LPRs (dependent on position risk level) to be eligible for staff-like access.
 - a. No documentation is required as proof of U.S. citizenship for subjects born in the United States.
 - b. If subjects are foreign-born, vendor POC MUST provide the subjects' Alien Registration or "A" Number for verification of their status.
- 1.2.2 Selective Service Registration (for males born after 12/31/59): Vendor POC MUST provide the following documentation to the IRS:
 - a. Registered applicants: Official letters of verification can be obtained and saved via the Selective Service website at <https://www.sss.gov/verify/proof/>.
 - b. Non-registered applicants:
 - i. If the subject is foreign-born, vendors must provide a letter from the Selective Service stating the subject was not required to register or that the subject was required to register but it is too late.
 - ii. For US citizens or foreign-born subjects who were required to register but did not, the vendor must provide a written explanation as to why the non-registration was not knowing or willful.

1.2.3 Federal Tax Compliance: Subjects must be tax compliant and must remain compliant while actively working on IRS contracts.

a. IRS will check tax compliance – no documentation is required from the vendor POC.

b. Vendors are responsible for informing their applicants of this requirement.

1.3 Timeliness

a. Delays in any of the actions stated below will result in contractor/subcontractor employee onboarding delays and starting work on the contract.

b. All investigative forms and documentation are due to the IRS within 10 business days of receipt. If IRS approval is required to confirm the qualifications of proposed contractor personnel, i.e. key personnel, documents must be submitted within 10 days of receipt of this approval.

c. All individuals listed on the RAC should be fingerprinted within 5 business days after IRS sponsorship in USAccess. If an individual is not able to make an appointment within this timeframe, the vendor POC will provide documentation that an appointment was not available and provide the date of the scheduled appointment.

d. The contractor/subcontractor employee must accurately complete the eAPP application, if applicable, within 8 calendar days of receipt of the invitation. Failure to complete eAPP will result in not being permitted to work on the contract.

1.4 Investigative Forms/Documentation, Fingerprinting, and eAPP

a. Contract Profile: Following the award of the contract, the COR will need to submit this document to HCO Mailbox to establish the Contract within the Contract Management Module (CMM) system. This creates the record for contract and task order information in the CMM.

b. Master Survey / Position Designation Tool: Following this meeting, the COR will work with the Vendor POC to complete this questionnaire for each unique position type on the contract. This questionnaire asks the vendor POC and COR to identify the duties the subjects will be performing for IRS in order to determine risk level for the position. A separate Master Survey must be completed for each position type on the contract (i.e., Systems Administrator, Programmer, Clerk Typist, etc.). The results must be saved and sent to IRS PS. The Position Designation Tool is listed here- [Position Designation System \(PDS\) and Position Designation Tool \(PDT\) \(dcsa.mil\)](https://dcsa.mil/PositionDesignationSystem(PDS)andPositionDesignationTool(PDT))

c. Investigative Forms/Documentation: The IRS will provide the vendor POC with the following investigative forms for completion by each applicant requiring staff-like access:

i. Risk Assessment Checklist (RAC): The RAC is a summary Excel spreadsheet that captures information related to the subjects for whom the vendor is requesting staff-like access. The vendor POC must ensure that EVERY column in the RAC is completed accurately prior to submitting to the IRS. Failure to do so will result in a rejection of the RAC and a delay in the on-boarding process.

ii. OF-306, Declaration for Federal Employment (version 2023): Form must be completed and signed by each contractor/subcontractor employee requiring staff-like access.

iii. Non-Disclosure Agreement (NDA): Form must be completed and signed by each contractor/subcontractor employee requiring access to sensitive but unclassified (SBU) data. This form is not required to be submitted to Personnel Security. This form is for the COR records only.

iv. Form 13340, Information Provided Concerning the Disclosure and Authorization Pertaining to Consumer Reports pursuant to the Fair Credit Reporting Act (FCRA): Form must be completed and signed by each contractor/subcontractor employee requiring staff-like access.

v. Notice 1379, Tax Check Notice: Provide to subjects to inform them of IRS' intent to check their federal tax compliance at onboarding and annually thereafter while continuing to actively work on IRS contracts.

d. Fingerprinting and eAPP

IRS will enroll each subject in USAccess based on the information provided on the RAC. The USAccess system will send an email invitation to schedule a fingerprinting appointment. Individuals should be fingerprinted within 5 business days of receipt of the sponsorship email. Note that the USAccess email may sometimes be marked as SPAM. Subjects are asked to check their SPAM folders for the email.

Electronic Questionnaires for Investigations (eAPP): If contractor/subcontractor employees do not have a current federal background investigation already completed and favorably adjudicated at the appropriate risk level, they will receive an email with a link to complete the eAPP form online. The email will contain instructions for accessing the system, and guidance to assist if issues are encountered. Contractors and subcontractor personnel must complete eAPP within 8 calendar days of receipt of the email.

1.5 Contractor Training Requirements

a. Contractor/subcontractor employees must complete Security Awareness Training (SAT) within 10 business days of receiving approval of interim staff-like access.

b. Contractor/subcontractor employees must certify completion using the Form 14616, Contractor SAT Certification, and the Form 11370, Certification of Annual UNAX Awareness Briefing and provide these forms to the COR.

1.6 Security Badges

a. Contractor/subcontractor employees must accurately complete Form 13716A, Request for ID Media/Access Card for Contract Employee, and submit as a PDF document (no photocopies or pictures).

b. Contractor/subcontractor employees are responsible for:

i. Safeguarding their ID/access card.

ii. Wearing ID cards/security badges at or above the waist with photo facing out in an approved cover with no obstructions to the card.

iii. Reporting lost/stolen cards immediately to their COR, the local Facilities Management & Security Services (FMSS) physical security office, the Situational Awareness Management Center (SAMC), Treasury Inspector General for Tax Administration (TIGTA), and completing Form 4589, Lost or Forgotten ID Card Record.

1.7 Contractor Separation

a. The vendor POC is responsible for notifying the COR no later than one business day of a contractor/subcontractor employee separating (notification may also occur prior to separation).

b. If the contractor/subcontractor employee works more than one contract or task order, notification to multiple CORs may be combined.

c. The contractor/subcontractor employee is responsible for returning the following to the COR on or before their last day of work on the contract. Note that laptops and equipment are assigned to the individual, not the vendor and therefore must be returned upon separation:

i. IRS-issued badge and/or proxy card

ii. IRS keys

iii. IRS- issued laptop

iv. IRS furnished documents

v. IRS passports

vi. Any and all IRS data

vii. Any other items furnished or identified by the IRS

viii. Any other items or materials issued by the Agency for the contract.

Note:

IRM 10.23.2: "Staff-like Access" is authority granted to perform one or more of the following:

- Enter IRS facilities or space (owned or leased) unescorted (when properly badged);
- Possess login credentials to information systems (IRS or vendor-owned systems that store, collect, and /or process IRS information);
- Possess physical and/or logical access to (including the opportunity to see, read, transcribe, and/or interpret) Sensitive but Unclassified (SBU) data, wherever the location (See IRM 10.5.1 for examples of SBU data);
- Possess physical access to (including the opportunity to see, read, transcribe, and/or interpret) security items and products (e.g., items that must be stored in a locked container, security container, or a secure room, wherever the location). These items include, but are not limited to, security devices/records, computer equipment, Identification media. For details and further security requirements, see IRM 1.4.6.5.1, Minimum Protection Standards); or,
- Enter physical areas, wherever the location, that store/process SBU information (unescorted).

Staff-Like Access is granted to an individual who is not an IRS employee (and includes, but is not limited to: contractor/subcontractor employees, whether procured by IRS or another federal agency, vendors, delivery persons, experts, consultants, paid/unpaid interns, other federal employees, cleaning/maintenance employees, etc.), and is approved upon required completion of a favorable suitability/fitness determination conducted by IRS Personnel Security.

IRSAP Requirements - Submission of Security Forms and Related Materials (APR 2024) requires contractor/subcontractor employees needing staff-like access to IRS equities to be investigated by IRS Personnel Security

PART II – CONTRACT CLAUSES AND PROVISIONS sam.gov

**A. FEDERAL ACQUISITION REGULATIONS (FAR) CONTRACT
CLAUSES/PROVISIONS**

**1. 52.252-1, Solicitation Clauses and Provisions Incorporated by Reference
(FEB 1998)**

This contract incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at: <http://www.acquistion.gov/far>.

**FEDERAL ACQUISITION REGULATION (48 CFR 52) SOLICITATION PROVISIONS
INCORPORATED BY REFERENCE**

NUMBER	TITLE	DATE
52.203-17	Contractor Employee Whistleblower Rights and Requirement to Inform Employees of Whistleblower Rights	NOV 2023
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements — Representation	JAN 2017
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	JAN 2017
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities	DEC 2023
52.204-27	Prohibition on a Bytedance Covered Application	JUN 2023
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	NOV 2015

52.217-5	Evaluation of Options	JUL 1990
52.245-1	Government Property	JAN 2017

2. FAR 52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a Firm, Fixed-Price Contract resulting from this solicitation.

[End of provision]

3. FAR 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor not later than 14 days before end of performance.

[End of clause]

5. FAR 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 15 days before the contract expires; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 30 months.

[End of clause]

6. FAR 52.203-2 Certificate of Independent Price Determination (APR 1985)

(a) The Quoter certifies that –

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other quoter or competitor relating to-

(i) Those prices;

(ii) The intention to submit an offer; or

(iii) The methods or factors used to calculate the prices offered.

(2) The prices in this offer have not been and will not be knowingly disclosed by the quoter, directly or indirectly, to any other quoter or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

(3) No attempt has been made or will be made by the quoter to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory-

(1) Is the person in the quoter's organization responsible for determining the prices being offered in this bid or quotation, and that the signatory has not participated and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2)

(i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision

[insert full name of person(s) in the contractor's

organization responsible for determining the prices offered in this bid or quotation, and the title of his or her position in the contractor's organization];

(ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) of this provision have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

(iii) As an agent, has not personally participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

(c) If the quoter deletes or modifies paragraph (a)(2) of this provision, the quoter must furnish with its offer a signed statement setting forth in detail the circumstances of the dis-closure.

(End of provision)

7. 52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (NOV 2021)

The Quoter shall not complete the representation at paragraph (d)(1) of this provision if the Quoter has represented that it “does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument” in paragraph ©(1) in the provision at [52.204-26](#), Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at [52.212-3](#), Quoter Representations and Certifications-Commercial Items. The Quoter shall not complete the representation in paragraph (d)(2) of this provision if the Quoter has represented that it “does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services” in paragraph ©(2) of the provision at [52.204-26](#), or in paragraph (v)(2)(ii) of the provision at [52.212-3](#).

(b) Definitions. As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition.

(b) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(b) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(b) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

© Procedures. The Quoter shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.

(d) Representation. The Quoter represents that—

(b) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Quoter shall provide the additional disclosure information required at paragraph ©(1) of this section if the Quoter responds “will” in paragraph (d)(1) of this section; and

(b) After conducting a reasonable inquiry, for purposes of this representation, the Quoter represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Quoter shall provide the additional disclosure information required at paragraph ©(2) of this section if the Quoter responds “does” in paragraph (d)(2) of this section.

(c) Disclosures.

(b) Disclosure for the representation in paragraph (d)(1) of this provision. If the Quoter has responded “will” in the representation in paragraph (d)(1) of this provision, the Quoter shall provide the following information as part of the offer:

(i) For covered equipment—

(b) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(c) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(b) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(b) Disclosure for the representation in paragraph (d)(2) of this provision. If the Quoter has responded “does” in the representation in paragraph (d)(2) of this provision, the Quoter shall provide the following information as part of the offer:

(b) For covered equipment—

(b) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(c) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

- (b) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

8. FAR 52.204-26 Covered Telecommunications Equipment or Services-Representation (Oct 2020)

(a) Definitions. As used in this provision, “covered telecommunications equipment or services” and “reasonable inquiry” have the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Procedures. The Quoter shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.

©

(b) Representation. The Quoter represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the quoter represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

9. 52.209-2 — Prohibition on Contracting with Inverted Domestic Corporations—Representation (Nov 2015)

(a) Definitions. “Inverted domestic corporation” and “subsidiary” have the meaning given in the clause of this contract entitled Prohibition on Contracting with Inverted Domestic Corporations (52.209-10).

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

© Representation. The Quoter represents that—

(1) It [] is, [] is not an inverted domestic corporation; and

(2) It [] is, [] is not a subsidiary of an inverted domestic corporation.

(End of provision)

10. FAR 52.209-5, Certification Regarding Responsibility Matters. (AUG 2020)

(a) (1) The Quoter certifies, to the best of its knowledge and belief, that-

(b) The Quoter and/or any of its Principals-

(b) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if quoter checks “have”, the quoter shall also see [52.209-7](#), if included in this solicitation);

© Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision;

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in any amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(b) Federal taxes are considered delinquent if both of the following criteria apply:

(b) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(ii) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(b) Examples.

(b) The taxpayer has received a statutory notice of deficiency, under I.R.C. § 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(ii) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. § 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability.

Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. § 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(ii) The Quoter has ☐ has not ☐, within a three-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(b) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

This Certification Concerns a Matter Within the Jurisdiction of an Agency of the United States and the Making of a False, Fictitious, or Fraudulent Certification May Render the Maker Subject to Prosecution Under Section 1001, Title 18, United States Code.

(b) The Quoter shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Quoter learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be considered in connection with a determination of the Quoter's responsibility. Failure of the Quoter to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Quoter nonresponsible.

(d) Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render, in good faith, the certification

required by paragraph (a) of this provision. The knowledge and information of an Quoter is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(c) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Quoter knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

11. FAR 52.209-7 – Information Regarding Responsibility Matters (Oct 2018)

(a) Definitions. As used in this provision—

“Administrative proceeding” means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

“Federal contracts and grants with total value greater than \$10,000,000” means—

- (b) The total value of all current, active contracts and grants, including all priced options; and
- (b) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

“Principal” means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Quoter ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the Quoter checked “has” in paragraph (b) of this provision, the Quoter represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the Quoter, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the Quoter of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(b) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(b) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs ©(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the Quoter has been involved in the last five years in any of the occurrences listed in ©(1) of this provision, whether the Quoter has provided the requested information with regard to each occurrence.

(d) The Quoter shall post the information in paragraphs ©(1)(i) through ©(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the

System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

12. 52.209-11 – Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (FEB 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that—

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Quoter represents that—

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

13. 52.225-20 Prohibition on Conducting Restricted Business Operations in Sudan—Certification (Aug 2009)

(a) Definitions. As used in this provision—

“Business operations” means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

“Marginalized populations of Sudan” means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8© of the Darfur Peace and Accountability Act (Pub. L. 109-344) ([50 U.S.C. 1701 note](#)); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

“Restricted business operations” means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

(b) Certification. By submission of its offer, the quoter certifies that the quoter does not conduct any restricted business operations in Sudan.

(End of provision)

52.23714. 52.219-11 Special 8(a) Contract Conditions (Jan 2017)

The Small Business Administration (SBA) agrees to the following:

- (a) To furnish the supplies or services set forth in this contract according to the specifications and the terms and conditions hereof by subcontracting with an eligible concern pursuant to the provisions of section 8(a) of the Small Business Act, as amended (15 U.S.C.637(a)).
- (b) That in the event SBA does not award a subcontract for all or a part of the work hereunder, this contract may be terminated either in whole or in part without cost to either party.
- (c) Except for novation agreements, delegate to the *Internal Revenue Service* the responsibility for administering the subcontract to be awarded hereunder with complete authority to take any action on behalf of the Government under the terms and conditions of the subcontract; provided, however, that the *Internal Revenue Service* shall give advance notice to the SBA before it issues a final notice terminating the right of a subcontractor to proceed with further performance, either in whole or in part, under the subcontract for default or for the convenience of the Government.
- (d) That payments to be made under any subcontract awarded under this contract will be made directly to the subcontractor by the *Internal Revenue Service*.
- (e) That the subcontractor awarded a subcontract hereunder shall have the right of appeal from decisions of the Contracting Officer cognizable under the "Disputes" clause of said subcontract.
- (f) To notify the *Internal Revenue Service* Contracting Officer immediately upon notification by the subcontractor that the owner or owners upon whom 8(a) eligibility was based plan to relinquish ownership or control of the concern.

(End of clause)

15. 8(a) Business Development Program Awards (Jun 2003)

(a) This purchase/delivery/task order or contract is issued by the contracting activity directly to the 8(a) program participant/contractor pursuant to the Partnership Agreement between the Small Business Administration (SBA) and the Department of the Treasury. However, the Small Business Administration is the prime contractor and retains responsibility for 8(a) certification, 8(a) eligibility determinations and related issues, and provides counseling and assistance to the 8(a) contractor under the 8(a) Business Development program. The cognizant SBA district office is:

Tennessee District Office

(b) The contracting officer is responsible for administering the purchase/delivery/task order or contract and taking any action on behalf of the Government under the terms and conditions of the purchase/delivery/task order or contract, to include providing the cognizant SBA district office with a signed copy of the purchase/delivery/task order or contract award within 15 days of the award. However, the contracting officer shall give advance notice to the SBA before it issues a final notice terminating performance, either in whole or in part, under the purchase order or contract. The contracting officer shall also coordinate with SBA prior to processing any novation agreement. The contracting officer may assign contract administration functions to a contract administration office.

(c) The contractor agrees:

(1) to notify the contracting officer, simultaneously with its notification to SBA (as required by SBA's 8(a) regulations), when the owner or owners upon whom 8(a) eligibility is based, plan to relinquish ownership or control of the concern. Consistent with 15 U.S.C. 637(a)(21), transfer of ownership or control shall result in termination of the contract for convenience, unless SBA waives the requirement for termination prior to the actual relinquishing of control; and,

(2) to adhere to the requirements of FAR 52.219-14, Limitations on Subcontracting.

(End of clause)

16. FAR 52.219-12 SPECIAL 8(A) SUBCONTRACT CONDITIONS (OCT 2019)

(a) The Small Business Administration (SBA) has entered into Contract No. *TBD* with the *Internal Revenue Service* to furnish the supplies or services as described therein. A copy of the contract is attached hereto and made a part hereof.

(b) The *Crespin Enterprises, LLC. (dba CollaborateUp, LLC)*, hereafter referred to as the subcontractor, agrees and acknowledges as follows:

(1) That it will, for and on behalf of the SBA, fulfill and perform all of the requirements of Contract No. *TBD* for the consideration stated therein and that it has read and is familiar with each and every part of the contract.

(2) That the SBA has delegated responsibility, except for novation agreements, for the administration of this subcontract to the *Internal Revenue Service* with complete authority to take any action on behalf of the Government under the terms and conditions of this subcontract.

(3) That it will notify the *Internal Revenue Service* Contracting Officer in writing immediately upon entering an agreement (either oral or written) to transfer all or part of its stock or other ownership interest to any other party.

(c) Payments, including any progress payments under this subcontract, will be made directly to the subcontractor by the *Internal Revenue Service*.

(End of clause)

17. FAR 52.219-14 Limitations on Subcontracting (OCT 2022)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that—

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to—

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are—

(i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are—

(i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) Independent contractors. An independent contractor shall be considered a subcontractor.

(e) Limitations on subcontracting. By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for—

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause—

☐ By the end of the base term of the contract and then by the end of each subsequent option period; or

X☒ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

B. INTERNAL REVENUE SERVICE ACQUISITION POLICY (IRSAP) REQUIREMENTS

This RFQ includes the following Internal Revenue Service Acquisition Procedures (IRSAP) Requirements.

1. Submission of Security Forms and Related Materials (APR 2024)

The Treasury Security Manual (TD P 15-71) sets forth investigative requirements for contractors and subcontractors who require staff-like access, wherever the location, to (1) IRS-owned or controlled facilities (unescorted); (2) IRS information systems (internal or external systems that store, collect, and/or process IRS information); and/or (3) IRS sensitive but unclassified (SBU) information.

“Staff-Like Access” is defined as authority granted to perform one or more of the following:

- Enter IRS facilities or space (owned or leased) unescorted (when properly badged);
- Possess login credentials to information systems (internal or external systems that store, collect, and/or process IRS information);
- Possess physical and/or logical access to (including the opportunity to see, read, transcribe, and/or interpret) SBU data; (See IRM 10.5.1 for examples of SBU data);
- Possess physical access to (including the opportunity to see, read, transcribe, and/or interpret) security items and products (e.g., items that must be stored in a locked container, security container, or a secure room. These items include, but are not limited to security devices/records, computer equipment- and identification media. For details see IRM 1.4.6.5.1, Minimum Protection Standards); or,
- Enter physical areas storing/processing SBU information (unescorted)

Staff-like access is granted to an individual who is not an IRS employee (and includes, but is not limited to: contractor/subcontractor personnel, whether procured by IRS or another entity, vendors, delivery persons, experts, consultants, paid/unpaid interns, other federal employee/contractor personnel, cleaning/maintenance personnel, etc.), and is approved upon required completion of a favorable suitability/fitness determination conducted by IRS Personnel Security.

For security requirements at contractor facilities using contractor-managed resources, please reference [Publication 4812](#), Contractor Security & Privacy Controls. The contractor shall permit access to IRS SBU information or information system/assets only to individuals who have received staff-like access approval (interim or final) from IRS Personnel Security.

Contractor/subcontractor personnel requiring staff-like access to IRS equities are subject to (and must receive a favorable adjudication or affirmative results with respect to) the following eligibility/suitability pre- screening criteria, as applicable:

- IRS account history for federal tax compliance (for initial eligibility, as well as periodic checks for continued compliance while actively working on IRS contracts);
- Selective Service registration compliance (for males born after 12/31/59); Contractors must provide proof of registration which can be obtained from the Selective Service website at www.sss.gov;
- U.S. citizenship/lawful permanent residency compliance; If foreign-born, contractors must provide proof of U.S. citizenship or Lawful Permanent Residency status by providing their Alien Registration Number ("A" Number);
- Background investigation forms;
- Credit history;
- Federal Bureau of Investigation fingerprint results; and,
- Review of prior federal government background investigations.

In this regard, Contractor shall furnish the following electronic documents to Personnel Security (PS) at hco.ps.contractor.security.onboarding@irs.gov

within 10 business days (or shorter period) of assigning (or reassigning) personnel to this contract/order/agreement and prior to the contractor (including subcontractor) personnel performing any work or being granted staff-like access to IRS SBU or IRS/contractor (including subcontractor) facilities, information systems/assets that process/store SBU information thereunder:

- IRS-provided Risk Assessment Checklist (RAC);
- Non-Disclosure Agreement (if contract terms grant SBU access); and,
- Any additional required security forms, which will be made available through PS and the COR.

Contract Duration:

a. Contractor (including subcontractor) personnel whose duration of employment is 180 calendar days or more per year must meet the eligibility/suitability requirements for staff-like access and shall undergo a background investigation based on the assigned position risk designation as a condition of work under the Government contract/order/agreement.

b. If the duration of employment is less than 180 calendar days per year and The contractor requires staff-like access, the contractor (including subcontractor) personnel must meet the eligibility requirements for staff-like access (federal tax compliance, Selective Service Registration, and US Citizenship or Lawful Permanent Residency), as well as an FBI Fingerprint result screening.

c. For contractor (including subcontractor) personnel not requiring staff-like access to IRS facilities, IT systems, or SBU data, and only require infrequent access to IRS-owned or controlled facilities and/or equipment (e.g., a time and material maintenance contract that warrants access one or two days monthly), an IRS background investigation is not needed and will not be requested if a qualified escort, defined as an IRS employee or as a contractor who has been granted staff-like access, escorts a contractor at all times while the escorted contractor accesses IRS facilities, or vendor facilities where IRS IT systems hardware or SBU data is stored. As prescribed in IRM 10.23.2, escorting in lieu of staff-like access for IT systems and access to SBU data (escorted or unescorted) will not be allowed.

The contractor (including subcontractor) personnel will be permitted to perform under the contract/order/agreement and have staff-like access to

IRS facilities, IT systems, and/or SBU data only upon notice of an interim or final staff-like approval from IRS Personnel Security, as defined in IRM 10.23.2 – *Contractor Investigations*, and is otherwise consistent with IRS security practices and related IRMs, to include, but not limited to:

- IRM 1.4.6 – Managers Security Handbook; IRM10.2.14 – Methods of Providing Protection; and IRM 10.8.1 - Policy and Guidance.

Current Investigation Reciprocity: Individuals who possess a prior favorably adjudicated Government background investigation that meets the scope and criteria required for their position may be granted interim staff-like access approval upon verification of the prior investigation, receipt of all required contractor security forms, and favorable adjudication of IRS pre-screening eligibility/suitability checks. If their current investigation meets IRS established criteria for investigative reciprocity, individuals will be granted final staff-like access, and will not be required to undergo a new investigation beyond an approved pre-screening determination.

Flow down of clauses: The contractor shall include and flow down, in its subcontracts (or arrangements or outsourced service agreements) that entails access to SBU information by a subcontractor, at any tier, the same Federal Acquisition Regulation (FAR) and local security or safeguard clauses or provisions for protecting SBU information or information systems that apply to and are incorporated in its prime contract with IRS.

2. Notification of Change in Contractor Personnel Employment Status, Assignment, or Standing (APR 2024)

The contractor, via e-mail (hco.ps.contractor.security.onboarding@irs.gov), shall notify the Contracting Officer (CO), Contracting Officer's Representative (COR), and Personnel Security within one (1) business day of the contractor (including subcontractor) becoming aware of any change in the employment status, information access requirement, assignment, or standing of a contractor (or subcontractor) personnel under this contract or order – to include, but not limited to, the following conditions:

- ☐ Receipt of the personnel's notice of intent to separate from employment or discontinue work under this contract/order;
- ☐ Knowledge of the personnel's voluntary separation from employment or performance on this contract/order (if no prior

notice was given);

- ☐ Transfer or reassignment of the personnel and performance of duties under this contract/order, in whole or in part, to another contract/order (and if possible, identify the gaining contract/order and representative duties/responsibilities to allow for an assessment of suitability based on position sensitivity/risk level designation);

- ☐ Denial of or revocation of staff-like access as determined by IRS Personnel Security;

- ☐ Separation, furlough or release from employment;

- ☐ Anticipated extended absence of more than

45 days; ☐ Change of legal name;

- ☐ Change to employment eligibility;

- ☐ Change in gender or other distinction when physical attributes figure prominently in the biography of an individual;

- ☐ Actual or perceived conflict of interest in continued performance under this contract/order (provide explanation);
or

- ☐ Death.

When required by the COR, the contractor may be required to provide the information required by this clause to the IRS using the Risk Assessment Checklist (RAC) or security documents as identified by Personnel Security. The notice shall include the following minimum information:

- ☐ Name of contractor personnel;

- ☐ Nature of the change in status, assignment or standing (i.e., provide a brief non- personal, broad-based explanation);

- ☐ Affected contract/agreement/order number(s);

- ☐ Actual or anticipated date of departure or separation;

- ☐ When applicable, the name of the IRS facility or facilities this individual routinely works from or has staff-like access to when performing work under this contract/order;

- ☐ When applicable, contractor (including subcontractor) using contractor

(or subcontractor) owned systems for work must ensure that their systems are updated to ensure personnel no longer have continued staff-like access to IRS work, either for systems administration or processing functions; and

- ☐ Identification of any Government Furnished Property (GFP), Government Furnished Equipment (GFE), or Government Furnished Information (GFI) (to include Personal Identity Verification (PIV) credentials or badges – also referred to as SmartID Cards)

provided to the contractor personnel and its whereabouts or status.

In the event the subject contractor (including subcontractor) is working on multiple contracts, orders, or agreements, notification shall be combined, and the cognizant COR for each affected contract or order (using the Contractor Separation Checklist (Form 14604 (Rev. 8-2016))) shall be included in the joint notification along with Personnel Security. These documents (the RAC and security forms) are also available by email request to Personnel Security.

The vendor POC and the COR must ensure all badges, Smart Cards, equipment, documents, and other government furnished property items are returned to the IRS, systems accesses are removed, and Real Estate & Facilities Management is notified of federal workspace that is vacant.

As a rule, the change in the employment status, assignment, or standing of a contractor (or subcontractor) personnel to this contract or order would not form the basis for an excusable delay for failure to perform under the terms of this contract, order or agreement.

Flow down of clauses. The contractor shall include and flow down, in its subcontracts (or arrangements or outsourced service agreements) that entails staff-like access to SBU information by a subcontractor, at any tier, the same Federal Acquisition Regulation (FAR) and local security or safeguard clauses or provisions for protecting SBU information or information systems that apply to and are incorporated in its prime contract with IRS.

3. IRS Specialized Information Technology (IT) Security Training (Role-Based) Requirements (APR 2024)

(a) Consistent with the Federal Information Security Modernization Act of 2014 (FISMA), specialized information technology (IT) security training (role-based) shall be completed prior to access to Information Systems

and annually thereafter by contractor and subcontractor personnel who have an IT security role or responsibility.

(b) Identifying contractor/subcontractor with a role or responsibility for IT security is completed by the Contractor, and verified by the COR, by completing the Risk Assessment Checklist (RAC). The roles listed in the RAC conform to those roles listed in the Internal Revenue Manual 10.8.1.3 that apply to contractor personnel. This process applies to new contractors/subcontractors, replacement personnel and for existing contractors/subcontractors whose roles change during their work on a contract. This includes, but is not limited to, having an approved elevated privilege to one or more IRS systems through the Business Entitlement Access Request System (BEARS).

(c) Prior to accessing any IT system, all contractor/subcontractor personnel must successfully complete all provisions of IR1052.204-9000 Submission of Security Forms and Related Materials.

(d) In keeping with the Security Orientation outlined in IR1052.224-9001, contractors/subcontractors designated on the Risk Assessment Checklist as performing a role shall complete approved training equal to the assigned hours within 5 business days of receiving the Personnel Security's memo approving staff-like access.

(e) Annual Requirements: Thereafter, on an annual basis within a FISMA year cycle beginning July 1st of each year, contractor/subcontractor personnel performing under this contract in the role identified herein is required to complete specialized IT security, role-based training by June 1st of the following year.

(f) Training Certificate/Notice: The contractor shall use the Government system identified by Cybersecurity to annually complete specialized IT security training (role- based). The COR will track the courses, hours completed and the adhere to the established due dates for each contractor/subcontractor personnel. Alternatively, courses may be completed outside of the Government system. Any courses taken outside of the Government system must be pre-approved by IRS Cybersecurity's FISMA Training Compliance team via the COR. Adequate information such as course outline/syllabus must be provided for evaluation. Once a course is approved, certificates of completion provided for each contractor/subcontractor shall be provided to COR in order to receive credit toward the required hours for the contractor/subcontractor personnel.

Copies of completion certificates for externally completed course must be shared with the Contracting Officer upon request.

(g) Administrative Remedies: A contractor/subcontractor who fails to complete the specialized IT security training (role-based) requirements, within the timeframe specified, may be subject to suspension, revocation or termination (temporarily or permanently) of staff-like access to IRS IT systems.

Flow down of clauses. The contractor shall include and flow down, in its subcontracts (or arrangements or outsourced service agreements) that entails staff-like access to SBU information by a subcontractor, at any tier, the same Federal Acquisition Regulation (FAR) and local security or safeguard clauses or provisions for protecting SBU information or information systems that apply to and are incorporated in its prime contract with IRS.

4. Expense Related to Proposal Submissions (MAY 2018)

This solicitation does not commit the Government to pay any costs incurred in the submission of any proposal or bid, or in making necessary studies or design for the preparation thereof or to acquire or contract for any services.

5. Key Personnel (MAY 2018)

The key personnel cited below are considered essential to the work being performed under this contract. If these individuals leave the Contractor's employ or are reassigned to other programs, the Contractor shall notify the Contracting Officer reasonably in advance and shall submit justification (including proposed substitutions) in enough detail to permit evaluation of the impact on the program. No diversion or replacement shall be made by the Contractor without the written consent of the Contracting Officer.

Key Personnel	Title

6. Safeguards Against Unauthorized Disclosure of Sensitive but Unclassified Information (APR 2024)

1. [Treasury Directive Publication 15-71](#) (TD P 15-71), Chapter III – Information Security, Section 24 – Sensitive But Unclassified Information defines SBU information as ‘any information, the loss, misuse, or unauthorized access to or modification of which could adversely affect the national interest or the conduct of Federal programs, or the privacy to which individuals are entitled under Section 552a of Title 5, United States Code (USC) (the Privacy Act) but which has not been specifically authorized under criteria established by an executive order or an act of Congress to be kept secret in the interest of national defense or foreign policy.’ SBU may be categorized in one or more of the following groups—

- Federal Tax Information (FTI), including any information on or related to a tax return
- Returns and Return Information
- Sensitive Law Enforcement Information
- Employee and Personnel Information
- Personally Identifiable Information (PII)
- Information Collected or Created from Surveys
- Other Protected Information

2. Tax return or tax return information disclosed to the contractor can be used only for a purpose and to the extent authorized herein, and willful disclosure of any such tax return or tax return information for a purpose and to the extent unauthorized for provision of appraisal services to assist with the valuation of conservation easements constitutes a felony, punishable upon conviction by a fine of as much as \$5,000 or imprisonment for as long as five (5) years, or both, together with the costs of prosecution. Any such knowing or negligent unauthorized disclosure of tax return or tax return information may also result in an award of civil damages in an amount not less than \$1,000 plus costs with respect to each instance of unauthorized disclosure. These penalties are prescribed by the Internal Revenue Code, Sections 7213 and 7431; see also 26 CFR § 301.6103(n)-1.

3. Contractors who perform work at contractor (including subcontractor) managed sites using contractor or subcontractor managed

IT resources shall adhere to the general guidance and specific privacy and security control requirements contained in Publication 4812, Contractor Security & Privacy Controls, IRM 10.23.2 - Personnel Security, Contractor Investigations, IRM 10.5.1 Privacy Policy, and IRM 10.8.1 - Information Technology (IT) Security, Policy and Guidance. Publication 4812 and IRM 10.5.1, 10.8.1 and 10.23.2 provide comprehensive lists of all security, privacy, information protection and disclosure controls and guidance.

4. Eligibility, Fitness and Suitability. Contractor (including subcontractor) personnel hired for work within the United States or its territories and possessions and who require staff-like access, wherever the location, to IRS-owned or controlled facilities or work on contracts that involve the design, operation, repair, or maintenance of information systems, and/or require staff-like access to SBU information, must meet the eligibility requirements under IRM 10.23.2, Personnel Security, Contractor Investigations, and shall be subject to security screening and investigative processing, commensurate with the position sensitivity level, and in accordance with IRM 10.23.2, and TD P 15-71. Contractor (including subcontractor) personnel must be found both eligible and suitable, and approved for staff- like access (interim or final) by IRS Personnel Security prior to starting work on the contract/order, and before being granted access to IRS information systems or SBU information.

5. General Conditions for Allowed Disclosure. Any SBU information, in any format, made available to or created by the contractor (including subcontractor) personnel shall be treated as confidential information and shall be used only for the purposes of carrying out the requirements of this contract. Inspection by or disclosure to anyone other than duly authorized officer or personnel of the contractor (including subcontractor) shall require prior written approval of the IRS. Requests to make such inspections or disclosures shall be addressed to the CO. Access to SBU information shall be provided on a "need to know" basis. SBU information shall never be indiscriminately disseminated, and no person shall be given access to (or allowed to retain) more SBU information than is needed for performance of their duties, and for which that individual has been authorized to receive as a result of having been successfully investigated, adjudicated, trained to receive, and what is strictly necessary to accomplish the intended business purpose and mission.

6. Nondisclosure Agreement. Consistent with TD P 15-71, Chapter II,

Section 2, and IRM 10.23.2.15 - Nondisclosure Agreement for Sensitive but Unclassified Information, each contractor (including subcontractor) personnel who requires staff-like access to SBU information shall complete, sign and submit to Personnel Security – through the CO (or COR, if assigned) — an approved Nondisclosure Agreement prior to being granted staff-like access to SBU information under any IRS contract or order.

7. Training. All Contractor personnel assigned to this contract with staff-like access to SBU information must complete IRS-provided privacy and security awareness training, including the Privacy, Information Protection, and Disclosure training, as outlined in IR1052.224-9001 Mandatory IRS Security Training for Information Systems, Information Protection and Facilities Physical Access. Contractor personnel required to take the Unauthorized Access to Taxpayer Data training must attest to understanding the penalties for unauthorized access, as instructed by the COR.

8. Encryption. All SBU information must be protected at rest, in transit, and in exchanges (i.e., internal and external communications). The contractor (including subcontractor) shall employ encryption methods and tools to ensure the confidentiality, integrity, and availability of SBU information.

9. Particularly relevant to this clause are the updated sections to IRM 10.8.1 and Publication 4812 regarding email and text messages, alternative work sites, and incident management:

- For email and text messaging, the contractor shall abide by IRM 10.8.1.4.17.2.2 “Electronic Mail (Email) Security”, IRM 10.5.1.6.8 “Email” plus all subsections, and IRM 10.8.2.2.1.18 “Contractor”; or Pub. 4812 section 28.3.1 “Electronic Mail (Email) Security,”. Included are requirements on encryption, subject line content, and restrictions on personal email accounts.
- For alternate work sites the contractor shall abide by IRM 10.8.1.4.11.16 “PE-17 Alternate Work Site” or Publication 4812 section 21.16 “PE-17 Alternate Work Site,”. Included are requirements for incident reporting, encryption, and secure access.

10. Incident and Situation Reporting. Contractors and subcontractors are required to report a suspected or confirmed breach in any medium or form, electronically, verbally or in hardcopy form immediately upon discovery. All incidents related to IRS processing, information or information systems shall be reported immediately upon discovery to the CO, COR, and CSIRC. Contact the CSIRC through any of the following methods:

CSIRC Contacts: Telephone: 240.613.3606 E-mail to csirc@irs.gov

In addition, if the SBU information is or involves a loss or theft of an IRS IT asset, e.g., computer, laptop, router, printer, removable media (CD/DVD, flash drive, floppy, etc.), or non-IRS IT asset (BYOD device), or a loss or theft of hardcopy records/documents containing SBU data, including PII and tax information, the contractor shall report the incident/situation to the Treasury Inspector General for Tax Administration (TIGTA) hotline at (800) 366-4484.

11. Staff-Like Access to, Processing and Storage of Sensitive but Unclassified (SBU) Information. The contractor (including subcontractor) shall not allow contractor or subcontractor personnel to access, process or store SBU on Information Technology (IT) systems or assets located outside the continental United States and its outlying territories.

Contractors (including subcontractors) utilizing their own IT systems or assets to receive or handle IRS SBU data shall not commingle IRS and non-IRS data.

12. Disposition of SBU Information. All SBU information processed during the performance of this contract, or to which the contractor (or subcontractor) was given staff-like access (as well as all related output, deliverables, or secondary or incidental by-products, information or data generated by the contractor or others directly or indirectly from the source material), regardless of form or format, shall be completely purged from all data storage components of the contractor's or subcontractor facilities and computer systems, and no SBU/Personally Identifiable Information (PII) information will be retained by the contractor either--

- ☐ When it has served its useful, contractual purpose, and is no longer needed to meet the contractor's (including subcontractor) other, continuing contractual obligations to the IRS or
- ☐ When the contract expires, or is terminated by the IRS (for convenience, default, or cause).

The contractor (including subcontractor) shall completely purge from its systems and any other storage, all SBU data, including PII and tax information (originals, copies, and derivative works) within 30 days of the point at which it has served its useful contractual purpose, or the contract expires or is terminated by the IRS (unless, the CO determines, and establishes, in writing, a longer period to complete the disposition of SBU data including PII and tax information).

The contractor shall provide to the IRS a written and signed certification to the COR that all SBU materials/information (i.e., case files, receipt books, PII and material, tax information, removable media (disks, CDs, thumb drives)) collected by, or provided to, the contractor have been purged, destroyed or returned.

13. Records Management.

A. Applicability

This language applies to all Contractors whose personnel create, work with, or otherwise handle Federal records, as defined in Section B, regardless of the medium in which the record exists. Contractor/subcontractor personnel are bound by the Records Management by Federal Agencies (44 U.S.C. Chapter 31) regarding the care and retention of federal records.

B. Definitions

"Federal record" as defined in 44 U.S.C. § 3301, includes all recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them.

The term Federal record:

1. includes [Agency] records;
2. does not include personal materials;
3. applies to records created, received, or maintained by Contractors pursuant to their [Agency] contract; and
4. may include deliverables and documentation

associated with deliverables.

C. Requirements

1. Contractor shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chapters. 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.

2. In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.

3. In accordance with 36 CFR 1222.32, Contractor shall maintain all records created for Government use or created in the course of performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Contractors shall ensure that all IRS data and IRS-derived data are in commercially available or open and non-proprietary format for transition (back to IRS) in accordance with the National Archives and Records Administration (NARA) disposition guidance.

4. IRS and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of IRS or destroyed except for in accordance with the provisions of IRM 1.15.5, Relocating/Removing Records, the agency records schedules and with the written concurrence of the CO. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, Contractor must immediately notify the appropriate CO. The CO must report the loss using the PII Breach Reporting Form. Privacy,

Governmental Liaison and Disclosure (PGLD, Incident Management) will review the PII Breach Reporting Form and alert the Records and Information Management (RIM) Program Office that a suspected records loss has occurred. The agency must report promptly to NARA in accordance with 36 CFR 1230.

5. The Contractor shall immediately notify the appropriate CO immediately upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the [contract vehicle]. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the Head of the Contracting Activity. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to IRS control or the Contractor must hold it until otherwise directed. Items returned to the Government shall be hand-carried, mailed, emailed, or securely electronically transmitted to the CO or address prescribed in the [contract vehicle]. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (4).

6. The Contractor is required to obtain the approval of the CO prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and [Agency] guidance for protecting sensitive, proprietary information, and controlled unclassified information.

7. The Contractor shall only use Government IT equipment for purposes specifically tied to or authorized by the contract and in accordance with IRS policy.

8. The Contractor shall not create or maintain any records containing any non- public IRS information that are not specifically tied to or authorized by the contract.

9. The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974, Internal Revenue Code section 6103 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.

10. IRS owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which IRS shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20.

11. Training. All Contractor personnel assigned to this contract who create, work with or otherwise handle records are required to take IRS-provided records management training. The Contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.

D. Flow down of requirements to subcontractors

1. The Contractor shall incorporate the substance of this language, its terms, and requirements including this paragraph, in all subcontracts under this [contract vehicle], and require written subcontractor acknowledgment of same.

2. Violation by a subcontractor of any provision set forth in this language will be attributed to the Contractor.

3. Other Safeguards. [Insert any additional disclosure safeguards provided by the Program Office/COR or that the CO determines are necessary and in the best interest of the Government and not addressed elsewhere in the contract. If none are entered here, there are no other safeguards applicable to this contract action.]

7. Mandatory IRS Security Training for Information Systems, Information Protection and Facilities Physical Access (APR 2024)

The Federal Information Security Modernization Act of 2014 (FISMA) requires each federal agency to provide periodic information security awareness training to all contractors/subcontractors involved in the

management, use, or operation of Federal information and information systems. In addition, contractor/subcontractor personnel are subject to the Taxpayer Browsing Protection Act of 1997, which prohibits willful unauthorized inspection of returns and return information and details that any violation of the Act could result in civil and criminal penalties. Contractor/subcontractor personnel are bound by the Records Management by Federal Agencies (44 U.S.C. Chapter 31) regarding the care and retention of federal records.

1. The contractor must ensure all new contractor/subcontractor personnel complete all assigned briefings which are based on the responses provided on the Risk Assessment Checklist Form 14606. These responses pertaining to access to any IRS system, including basic LAN, email and internet; access to any Sensitive but Unclassified (SBU) data; and access to any IRS facility. Since new contractor/subcontractor personnel will not have access to the IRS training system, the COR shall provide softcopy versions of each briefing.
 - i. Exception: Contractor personnel (including subcontractors) performing under IRS contracts with Nonprofit Agencies Employing People Who Are Blind or Severely Disabled (as described in FAR Subpart 8.7) are exempted from the aforementioned briefing requirements, unless the contractor requests access to the training, or there is a compelling justification for requiring the training that is approved by the Contracting Officer (CO). An example of this would be in an instance where visually impaired personnel is assigned to perform systems development and has potential staff-like access to IRS information.
 - ii. Contractor/subcontractor personnel working with IRS information at contractor-controlled facilities with no access to the IRS network will be subject to all mandatory briefing excepting the Facilities Management Physical Security briefing as outlined in Publication 4812.
 - iii. Service Personnel: Inadvertent Sensitive Information Access Training
Contractor personnel performing: (i) janitorial and cleaning services (daylight operations), (ii) building maintenance, or (iii) other maintenance and repair and need staff-like access to IRS facilities are required to complete Inadvertent Access to Sensitive

Information (SBU) Access training.

- iv. Service Personnel Security Awareness Training: Contractor personnel providing services in the following categories are required to complete FMSS Physical Security Training:

- Medical;
- Cafeteria;
- Landscaping;
- Janitorial and cleaning (daylight operations);
- Building maintenance; or
- Other maintenance and repair

2. In combination these mandatory briefings are known as IRS Security Awareness Training (SAT). The topics covered are: Cybersecurity Awareness, Privacy Information Protection and Disclosure, Unauthorized Access to Taxpayer Data, Records Management, Inadvertent Sensitive Information Access, and/or Facilities Physical Security. The completion of the assigned mandatory briefings constitutes the completion of the Security Orientation.

3. The SAT must be completed by contractor/subcontractor personnel within 10 business days of successful resolution of the suitability and eligibility for staff-like access as outlined in IR1052.204-9000 Submission of Security Forms and Related Materials and before being granted access to SBU data. The date listed on the memo provided by IRS Personnel Security shall be used as the commencement date.

4. Training completion process:

The contractor must submit confirmation of completed SAT mandatory briefings for each contractor/subcontractor personnel by either:

- i. Using Form 14616 signed and dated by the individual and authorized contractor management entity and returned to the COR. This option is used for new contractor/subcontractor personnel and any that do not have an IRS network account.
 - ii. Using the IRS training system which is available to all contractors with IRS network accounts
5. Annual Training. For contracts/orders/agreement exceeding

one year in length, either on a multiyear or multiple year basis, the contractor must ensure that personnel complete assigned SAT mandatory briefings annually no later than October 31st of the current calendar year. The contractor must submit confirmation of completed annual SAT on all personnel unable to complete the briefings in the IRS training systems by submitting completed Form 14616 assigned to this contract/order/agreement, via email, to the COR, upon completion.

6. Contractor's failure to comply with IRS security policy (to include completion and certification of SAT requirements within the timeframe specified) may be subject to suspension, revocation or termination (temporarily or permanently) of staff-like access to IRS IT systems and facilities.

7. Flow down of clauses. The contractor shall include and flow down, in its subcontracts (or arrangements or outsourced service agreements) that entails staff-like access to SBU information by a subcontractor, at any tier, the substantially same Federal Acquisition Regulation (FAR) and local security or safeguard clauses or provisions for protecting SBU information or information systems that apply to and are incorporated in its prime contract with IRS.

8. Electronic Invoicing and Payment Requirements for the Invoice Processing Platform (IPP) (JUL 2019)

(a) Definitions:

"Short payment" as used in this clause means the partial payment of an invoice for goods/services rendered at the time of payment when the invoice includes additional goods/services that have not yet been provided/rendered.

"Short payment" example: The contract requires the delivery of a set number of items, with the price, delivery location, and delivery due date also specified. The vendor delivers 50% of the items as specified but invoices for 100% of the items. Before implementation of the IPP, the IRS would have paid the vendor for the items delivered and instructed the vendor to re-invoice the IRS when the balances of the items were delivered. In other words, the IRS would "short pay" the invoice since the IRS did not remit payment for the full invoice amount. With implementation

of the IPP, the IRS can no longer do this because the IRS cannot accept an electronic invoice that includes items not yet received. The IRS will reject the invoice. The vendor needs to submit an invoice for only the items received by the IRS (in this case, 50%), and, if these items meet all other contract terms and conditions, the IRS will pay the invoiced amount. The vendor submits subsequent invoice(s) for items as they are delivered and accepted.

(b) The Invoice Processing Platform (IPP) is a secure Web-based electronic invoicing and payment information service available to all Federal agencies and their suppliers. Effective October 1, 2012, invoicing for payment through the IPP will be mandatory for all new contract awards. Additional information regarding the IPP may be found at the IPP website address <https://www.ipp.gov>. Contractors must complete the contractor point of contact information below and submit it with their proposal submissions. Contractors may contact the IPP Helpdesk for assistance via e-mail atippgroup@stls.frb.org or via phone at (866) 973-3131. Once a contract award has been made, the contractor will be contacted by the IPP via e-mail to set-up an account. It will be necessary for contractors to login to their IPP accounts every 90 days to keep their IPP accounts active.

(c) Contractor Point of Contact Information

Contractor Name: _____
Contractor IPP Point of Contact Name: _____
Contractor Phone Number: _____
Contractor E-mail Address: _____

(d) Electronic Invoicing and Payment Requirements

Vendor invoices submitted electronically through the IPP should be in the proper format and contain the information required for payment processing. To be approved for payment, a "proper invoice" must list the items specified in FAR 52.232-25 (a)(3)(i) through (a)(3)(x), or in the case of a Commercial Item Contract, the items included in 52.212-4(g)(1)(i) through (g)(1)(x).

If the vendor is offering a discount via the IPP, the discount must be reflected on the invoice. The vendor will select 'Create Invoice'. The IPP system will default to 'Net 30 Prompt Pay' under the Payment Terms dropdown box. The vendor will select from 54 different discount options for the invoice that is being created. If the vendor chooses to offer a discount on the invoice screen,

the information will interface to the payment system for processing. Discounts that are offered on attachments rather than the invoice itself cannot be accepted.

Under this contract, the following documents are required to be submitted as an attachment to the invoice (Contracting Officer fills in additional documentation that must be furnished by the contractor (e.g., timesheet)). **Please do not submit into IPP any documentation/attachments that conflict with what is stated on the invoice:**

Payment and Invoice Questions

For payment and invoice questions, contact the Ancillary Systems at (304) 254-3372 or via e- mail at cfo.fm.ipp.customer.support@irs.gov.

(e) Waiver

If the Contractor is unable to use the IPP for submitting payment requests starting on October 1, 2012, then a waiver form must be completed and submitted with the contractor's proposal submission for review and approval by the Contracting Officer based on one of the conditions listed in the waiver. The vendor will be notified prior to award as to whether their request for waiver has been approved or denied. If the waiver is granted, then a copy of the waiver must be submitted with each paper invoice that the vendor submits to the payment office or the invoice will be returned.

(f) Short Payment

Short payment on vendor submitted invoices will no longer be processed or paid. If any portion of the invoice does not meet the requirements for a proper invoice, the entire invoice shall be rejected and returned to the vendor unpaid.

IRS Invoice Processing Platform (IPP) Waiver Form

The IRS invoicing and payment requirements clause (IR1052.232-9000) requires that all invoices under awards made (or effective) on or after October 1, 2012, be submitted electronically via the IPP unless a waiver is requested and granted. If the Contractor is unable to submit its invoice through the IPP, the Contractor shall complete this waiver form indicating

the reason for the waiver request by selecting the appropriate box below and providing a narrative summarizing in detail the circumstances requiring a waiver.

For a solicitation, submit the waiver form with the proposal submission. For a modification that incorporates the IPP clause into an existing contract, submit the waiver form with the modification. The CO will notify the vendor via e-mail or another appropriate means of communication prior to award as to whether their waiver has been approved or denied. If the waiver is granted, then a copy of the approved waiver must be submitted with each invoice that the vendor submits to the payment office or the invoice will be returned.

Reason for requesting a waiver of the requirement to submit an electronic invoice via the IPP:

- ☐ 1. Submission of invoices through IPP would impose a hardship on an individual (includes employees and sole proprietors) due to either a physical or mental disability; a geographic, language, or literacy barrier; or an undue financial burden. The requirement to submit invoices through the IPP is automatically waived for all individuals who do not have payment capability using ACH with a U.S. financial institution.
- ☐ 2. The political, financial or communications infrastructure where the place of business is located does not support access to the IPP for submitting invoices electronically.
- ☐ 3. The contractor is located within an area designated by the President of the United States or an authorized agency administration as a disaster area. (Please identify area/location.)
- ☐ 4. The submission of invoices electronically may pose a threat to national security, the life or physical safety of an individual may be endangered, or a law enforcement action may be compromised.
- ☐ 5. The agency does not expect to receive more than one invoice from the same contractor within a one-year period. i.e., the invoice submission is non- recurring.
- ☐ 6. The contractor customarily submits a high volume of invoices on a regular basis via file format, not currently supported by the IPP (i.e., uses a file format other than XML or CSV) and the high volume of invoices would cause a significant burden to the contractor if submitted through the IPP individually. If utilizing this exception, please identify the file formats supported by your invoicing system so that the IPP may consider

implementing the requested file format at a later date. File format(s) used:

☐ 7. Other - Please explain:

Attach a separate sheet of paper with a summary narrative substantiating the circumstances for the waiver exception selected from above (1 through 7).

Waiver Submitted By:

Contractor Name

Name of Person Submitting Request for Waiver

Title Signature of Person Submitting Request for Waiver

E-mail Address

Phone No.

Contract/Order No.

Date Submitted

Waiver Approved By:

Contracting Officer's Name Printed

Contracting Officer's Signature

Date

9. Section 508 Information, Documentation and Support (DEC 2019)

In accordance with 36 CFR, Appendix C to Part 1194, [the information and communication technology \(ICT\)](#) products and product support services

documentation furnished in performance of this contract shall be provided at no additional cost. The contractor shall provide information, documentation, and support relative to the supplies and services as described in the statement of work, performance work statement or statement of objectives (select one). The following technical standards and provisions have been determined to be applicable to this contract:

X Chapter 6: Support Documentation and Services

X 601 General
 X 601.1
X 602 Support Documentation
 X 602.1 602.2 602.3 602.4
X 603 Support Services
 X 603.1 603.2 603.3

(End of clause)

10. Section 508 Services (APR 2024)

All contracts, solicitations, purchase orders, delivery orders and interagency agreements that contain a requirement of services which will result in the delivery of a new or updated [information and communication technology \(ICT\)](#) item/product must conform to the applicable provisions of the appropriate technical standards in 36 CFR, Appendix C to Part 1194, and functional performance criteria in 36 CFR Chapter 3, unless an agency exception to this requirement exists at [E202 General Exceptions](#).

The following technical standards and provisions have been determined to be applicable to this contract:

Chapter 4: Hardware

 401 General
 401.1
 402 Closed Functionality
 402.1 402.2(1-6) 402.3 402.4 402.5
 403 Biometrics
 403.1
 404 Preservation of Information Provided for Accessibility
 404.1
 405 Privacy

- ☐ 405.1
- ☐ 406 Standard Connections
 - ☐ 406.1
- ☐ 407 Operable Parts
 - ☐ 407.1 ☐ 407.2 ☐ 407.3 ☐ 407.4 ☐ 407.5 ☐ 407.6 ☐ 407.7
 - ☐ 407.8
- ☐ 408 Display Screens
 - ☐ 408.1 ☐ 408.2 ☐ 408.3
- ☐ 409 Status Indictors
 - ☐ 409.1
- ☐ 410 Color Coding
 - ☐ 410.1
- ☐ 411 Audible Signals
 - ☐ 411.1
- ☐ 412 ICT with Two-Way Communication
 - ☐ 412.1 ☐ 412.2 ☐ 412.3 ☐ 412.4 ☐ 412.5 ☐ 412.6
 - ☐ 412.7
 - ☐ 412.8
- ☐ 413 Closed Caption Processing Technologies
 - ☐ 413.1
- ☐ 414 Audio Description Processing Technologies
 - ☐ 414.1
- ☐ 415 User Controls for Captions and Audio Descriptions
 - ☐ 415.1

X Chapter 5: Software

- ☒ 501 General
 - ☒ 501.1
- ☒ 502 Interoperability with Assistive Technology
 - ☒ 502.1 ☒ 502.2 ☒ 502.3 ☒ 502.4(A-G)
- ☒ 503 Applications
 - ☒ 503.1 ☒ 503.2 ☒ 503.3 ☒ 503.4
- ☒ 504 Authoring Tools

X___ 504.1 X___ 504.2 X___ 504.3 X___ 504.4

X Chapter 7: Referenced Standards

X___ 701 General

X___ 701.1

X___ 702 Incorporation by Reference

X___ 702.1 X___ 702.2 X___ 702.3 X___ 702.4 X___ 702.5 X___ 702.6 X___ 702.7

X___ 702.8 X___ 702.9 X___ 702.10

The standards do not require the installation of specific accessibility-related software or the attachment of an assistive technology device, but merely require that the ICT be compatible with such software and devices so that it can be made accessible, if required by the agency in the future.

The following functional performance criteria (36 CFR Chapter 3) apply to this contract.

X Chapter 3: Functional Performance Criteria

X___ 301 General

X___ 301.1

___ 302 Functional Performance Criteria

___ 302.1 X___ 302.2 X___ 302.3 X___ 302.4 X___ 302.5 X___ 302.6

X___ 302.7 X___ 302.8 X___ 302.9

(End of clause)

11. Section 508 Accessibility of Information and Communication Technology (100% Compliance) (APR 2024)

Each information and communication technology (ICT) product or service furnished under this contract shall comply with the Information and Communication Technology Accessibility Standards (36 CFR, Appendix C to Part 1194). If the Contracting Officer determines any furnished products or services are not in compliance with the contract, the Contracting Officer will apply the remedies described under FAR 52.246-2, Inspection of Supplies – Fixed Price or FAR 52.246-4, Inspection of Services – Fixed Price.

The following technical standards and provisions have been determined to be applicable to this contract:

Chapter 4: Hardware

___ 401 General

_____	401.1	
_____	402 Closed Functionality	
_____	402.1	_____ 402.2(1-6) _____ 402.3 _____ 402.4 _____ 402.5
_____	403 Biometrics	
_____	403.1	
_____	404 Preservation of Information Provided for Accessibility	
_____	404.1	
_____	405 Privacy	
_____	405.1	
_____	406 Standard Connections	
_____	406.1	
_____	407 Operable Parts	
_____	407.1	_____ 407.2 _____ 407.3 _____ 407.4 _____ 407.5
_____	407.6	_____ 407.7 _____ 407.8
_____	408 Display Screens	
_____	408.1	_____ 408.2 _____ 408.3
_____	409 Status Indicators	
_____	409.1	
_____	410 Color Coding	
_____	410.1	
_____	411 Audible Signals	
_____	411.1	
_____	412 ICT with Two-Way Communication	
_____	412.1	_____ 412.2 _____ 412.3 _____ 412.4 _____ 412.5
_____	412.6	_____ 412.7 _____ 412.8
_____	413 Closed Caption Processing Technologies	
_____	413.1	
_____	414 Audio Description Processing Technologies	
_____	414.1	
_____	415 User Controls for Captions and Audio Descriptions	
_____	415.1	

X Chapter 5: Software

X _____ 501 General

☒ 501.1
☒ 502 Interoperability with Assistive Technology
 ☒ 502.1 ☒ 502.2 ☒ 502.3 ☒ 502.4(A-G)
☒ 503 Applications
 ☒ 503.1 ☒ 503.2 ☒ 503.3 ☒ 503.4
☒ 504 Authoring Tools
 ☒ 504.1 ☒ 504.2 ☒ 504.3 ☒ 504.4

X Chapter 7: Referenced Standards

☒ 701 General
 ☒ 701.1
☒ 702 Incorporation by Reference
 ☒ 702.1 ☒ 702.2 ☒ 702.3 ☒ 702.4 ☒ 702.5
 ☒ 702.6 ☒ 702.7 ☒ 702.8 ☒ 702.9 ☒ 702.10

The standards do not require the installation of specific accessibility-related software or the attachment of an assistive technology device, but merely require that the ICT be compatible with such software and devices so that it can be made accessible, if required by the agency in the future.

The following functional performance criteria (36 CFR Chapter 3) apply to this contract.

X Chapter 3: Functional Performance Criteria

☒ 301 General
 ☒ 301.1
☒ 302 Functional Performance Criteria
 ☒ 302.1 ☒ 302.2 ☒ 302.3 ☒ 302.4 ☒ 302.5 ☒ 302.6
☒ 302.7 ☒ 302.8 ☒ 302.9

12. Staff-Like Access, Use or Operation of IRS Information Technology (IT) Systems by Contractors (APR 2024)

In performance of this contract, the contractor agrees to comply with the following requirements and assumes responsibility for compliance by its personnel and subcontractors (and their personnel):

1. IRS Information Technology Security Policy and Guidance. All

current and new IRS contractor (including subcontractor) personnel authorized staff-like access to Treasury/IRS owned or controlled facilities and information systems, or work, wherever located, on those contracts, which involve the design, operation, repair or maintenance of information systems and staff-like access to Sensitive But Unclassified (SBU) information shall comply with the IRS Information Technology Security Policy and Guidance, Internal Revenue Manual (IRM) 10.8.1 Policy and Guidance, 10.8.2 IT Security Roles and Responsibilities, and IRS Publication 4812.

Copies of IRM 10.8.1 and 10.8.2 are available at <http://www.irs.gov/irm/>. This requirement applies to contractors who are using contractor/subcontractor-managed systems, including laptop computers, workstations, servers, and other IT resources at contractor managed facilities. A copy of the most recent version of Publication 4812 is available at <https://www.irs.gov/pub/irs-pdf/p4812.pdf>.

2. Staff-Like Access Request and Authorization. Within ten (10) business days after contract award or issuance of an order, the contractor shall provide the Contracting Officer's Representative (COR) and Personnel Security, via email to hco.ps.contractor.security.onboarding@irs.gov list of names of all applicable contractor and subcontractor personnel and the IRS location(s) identified in the contract for which staff-like access is requested. Personnel Security will conduct an initial screening to determine eligibility and suitability for staff-like access in accordance with IRM 10.23.2, Contractor Investigations, and Department of the Treasury Security Manual (TD P) 15-71, Chapter II, Section 2.

Contractor and subcontractor personnel are not permitted to begin work on the contract or order until approved for interim staff-like access (at a minimum) as defined in IRM 10.23.2. This is consistent with IRS security practices and related IRMs, to include, but not limited to, IRM 1.4.6 – Managers Security Handbook, IRM 10.2.14 – Methods of Providing Protection, and IRM 10.8.1 - Policy and Guidance. Upon notification of a favorable suitability determination and interim staff-like approval, the COR will complete an Online 5081 (OL5081), Automated Information System User Registration/Change Request, for each prime or subcontractor personnel and require an electronic signature from each such personnel indicating the contractor

personnel has read and fully understands the security requirements governing staff- like access to the Service's IT systems.

3. Remote Staff-Like Access. If the contract authorizes staff-like access to IRS IT systems, information, or assets remotely; that is, from the contractor or other facility, office, or site, the requirements of this clause governs, as well as the general guidance and specific security control standards in IRS Publication 4812, Contractor Security Controls. The contractor will be required to input data into a system, to be defined by the IRS, to describe the security controls being used to protect information.

4. Contractor Acknowledgement. The contractor also acknowledges and agrees:

(a) That personnel must comply with all laws, IRS system security rules and security policies, standards, and procedures, and (b) That any one of its personnel unsanctioned, negligent, or willful violation of the laws, system security rules, and security policies, standards, and procedures may result in the revocation of staff-like access to IRS information technology systems, immediate removal from IRS premises and the contract, and may be subject to arrest by Federal law enforcement agents.

5. Limited Personal Use of Government IT Resources.

a. Contractor (including subcontractor) personnel, like Federal employees, have no inherent right to use Government IT resources and this policy does not create the right to use Government IT resources for nongovernmental purposes. See IRM 10.8.27, Exhibit 10.8.27-1, Prohibited Uses of Government IT Resources, for specific examples of prohibited uses. See Title 5 - Code of Federal Regulations (CFR) - Part 734 – Political Activities of Federal Employees, for specific examples of prohibited political activities.

b. Contractors and subcontractors are required to report a suspected or confirmed breach in any medium or form, electronically, verbally or in hardcopy form, immediately upon discovery. All incidents related to IRS processing, information or information systems shall be reported immediately upon discovery to the CO, COR, and CSIRC. Contact the CSIRC through any of the following methods:

Telephone: 240.613.3606 E-mail to csirc@irs.gov

- Information about unclassified cyber security incidents of a sensitive nature shall be transmitted using secure messaging or

alternative forms of encryption.

- If the incident involves the loss or theft of an IRS IT asset, e.g., computer, laptop, router, printer, removable media (CD/DVD, flash drive, floppy, etc.), or non-IRS IT asset (BYOD device), or a loss or theft of hardcopy records/documents containing SBU data, including PII and tax information, the contractor shall also report the incident/situation to the Treasury Inspector General for Tax Administration (TIGTA) hotline at 800-366- 4484.

6. Replacement Personnel. Contractor personnel who violate any conditions set forth in the clause are subject to removal from performance under the contract. The Government will provide notice to the Contractor of any contractor personnel no longer eligible for performance under the contract. The Contractor shall provide the name of the proposed replacement personnel to the CO and COR within five (5) business days from receipt of notice. The Contractor shall ensure replacement personnel have similar or equal credentials to the personnel being replaced.

7. Monitoring Notification. IRS management retains the right to monitor both the content and the level of access of contractor personnel use of IRS IT systems. Contractor personnel do not have a right, nor should they have an expectation, of privacy while using any IRS information technology system at any time, including accessing the Internet or using e-mail.

8. Security Reports and Information. If any reports are required, the COR may direct the submission of such reports and information through a specific IRS application, to be determined, or the entry of specific information into the application or system.

9. Subcontracts. The Contractor shall incorporate this clause in all subcontracts, subcontract task or delivery orders or other subcontract performance instrument where the subcontractor personnel will require staff-like access, use or operation of IRS information technology systems.

10. Flow down of clauses: The contractor shall include and flow down, in its subcontracts (or arrangements or outsourced service agreements) that entails access to SBU information by a subcontractor, at any tier, the substantially same Federal Acquisition Regulation (FAR) and local security or safeguard clauses or provisions for protecting SBU information or information systems that apply to and are incorporated in its prime contract with IRS.

13. Information Systems and Information Security Controls for Contracting Actions Subject to Internal Revenue Manual (IRM) 10.8 Series (APR 2024)

In performance of this contract, the contractor agrees to comply with the following requirements and assumes responsibility for compliance by its personnel and subcontractors (and their personnel):

(a) General. The contractor shall ensure IRS information and information systems are protected at all times. The contractor shall develop, implement, and maintain effective controls and methodologies in its business processes, physical environments, and human capital or personnel practices that meet or otherwise adhere to the security controls, requirements, and objectives described in applicable security control guidelines, and their respective contracts.

(b) IRM 10.5.1 and 10.8 Series applicability. This contract action is subject to Internal Revenue Manual (IRM) Part 10.8– Information Technology (IT) Security, Policy and Guidance, and IRM 10.5 – Privacy and Information Protection series. The contractor shall adhere to the general guidance and specific security control standards or requirements contained in IRM 10.5 and IRM10.8 series. While the IRM 10.8 series shall apply to the requirements to access systems, and IRM 10.5 series shall apply to access SBU data, IRS Publication 4812, Contractor Security & Privacy Controls, may also govern as addressed in another clause. It will address the requirements related to physical and personnel security that must continue to be maintained at contractor sites.

(c) Based on the Federal Information Security Modernization Act of 2014 (FISMA), and standards and guidelines developed by the National Institute of Standards and Technology (NIST), IRM 10.8 series provides overall IT security control guidance for the IRS, and uniform policies and guidance to be used by each office, or business, operating, and functional unit within the IRS that uses IRS information systems to accomplish the IRS mission.

(d) Contractor Security Representative. The contractor shall assign

and identify, in its offer, a Contractor Security Representative (CSR) and alternate CSR to all contracts requiring staff-like access to IRS information, information technology and systems, facilities, and/or assets. The CSR is the contractor's primary point for the Government on all security-related matters and the person responsible for ensuring the security of information and information systems in accordance with the terms and conditions of the contract and all applicable security controls. If required by the Contracting Officer's Representative, the contractor will be required to input data into a system, to be defined by the IRS, to describe the security controls being used to protect information.

(e) Flow down of clauses. The contractor shall include and flow down, in its subcontracts (or arrangements or outsourced service agreements) that entail staff-like access to SBU information by a subcontractor or agent, at any tier, the substantially same Federal Acquisition Regulation (FAR) and local security or safeguard clauses or provisions for protecting SBU information or information systems that apply to and are incorporated in its prime contract with IRS.

14. Information Systems and Information Security Controls for Contracting Actions Subject to IRS Publication 4812 (APR 2024)

Publication 4812 is an IRS specific guide to NIST SP 800-53 (version 4.0) when staff-like access to IRS information or information systems under contracts for services on behalf of the IRS is outside of IRS controlled facilities or the direct control of the Service (as opposed to [Internal Revenue Manual 10.8.1 - Information Technology \(IT\) Security, Policy and Guidance](#), which applies when contractors are accessing IRS information and information systems at Government controlled facilities).

The IRS Publication 4812 is a living document and updated annually to reflect changes from Executive Orders, OMB requirements, NIST updates, etc. The most current version (October 2019) of Publication 4812 is located on the [irs.gov](https://www.irs.gov) website.

In performance of this contract, the contractor agrees to comply with the following requirements and assumes responsibility for compliance by its personnel and subcontractors (and their personnel):

1. The contractor shall ensure IRS information and information systems (those of the IRS and/or the contractor, as appropriate) are protected at all

times. In order to do so, the contractor shall develop, implement, and maintain effective controls and methodologies in its business processes, physical environments, and human capital or personnel practices that meet or otherwise adhere to the security controls, requirements, and objectives described in applicable security control guidelines, and their respective contracts.

(a) The contractor will be required to input data into a system, to be defined by the IRS, to describe the security controls being used to protect information. Publication 4812 applicability. This contracting action is subject to Publication 4812 – Contractor Security & Privacy Controls. Publication 4812 is available at: <https://www.irs.gov/pub/irs-pdf/p4812.pdf>

(b) The contractor shall adhere to the general guidance and specific security control standards or requirements contained in Publication 4812. By inclusion of this clause in the contract, the most recent version of Publication 4812 is incorporated into the contract and has the same force and effect as if included in the main body of the immediate contract.

2. Flowing down from the Federal Information Security Modernization Act of 2014 (FISMA) and standards and guidelines developed by the National Institute of Standards and Technology (NIST), Publication 4812 identifies basic Technical, Operational, and Management (TOM) security controls and standards required of under contracts for services in which contractor (or subcontractor) personnel will either—

(a) Have staff-like access to, develop, operate, or maintain IRS information or information systems on behalf of the IRS (or provide related services) outside of IRS facilities or the direct control of the Service, and/or

(b) Have staff-like access to, compile, process, or store IRS SBU information on their own information systems/Information Technology (IT) assets or that of a subcontractor or third- party Service Provider, or when using their own information systems (or that of others) and on IT, or Electronic Information and Technology (EIT) (as defined in FAR Part 2) other than that owned or controlled by the IRS.

3. Unless the manual specifies otherwise, the IRS-specific requirements in Publication 4812 meet the standard from the latest

version of the NIST Special Publication (SP) 800-53 (Version 4.0) – Federal Information Systems and Organizations. The security controls, requirements, and standards described within the Publication 4812 are to be used in lieu of the common, at-large security control standards enumerated in NIST SP 800-53 (Version 4.0).

Publication 4812 also describes the framework and general processes for conducting contractor security reviews – performed by IT Cybersecurity—to monitor compliance and assess the effectiveness of security controls applicable to any given contracting action subject to Publication 4812.

4. **Contractor Security Representative.** The contractor shall assign and identify, upon award, a Contractor Security Representative (CSR) and alternate CSR to all contracts requiring staff-like access to Treasury/bureau information, information technology and systems, facilities, and/or assets. The CSR is the contractor’s primary point for the Government on all security-related matters and the person responsible for ensuring the security of information and information systems in accordance with the terms and conditions of the contract and all applicable security controls.

5. **Flow down of clauses.** The contractor shall include and flow down, in its subcontracts (or arrangements or outsourced service agreements) that entails staff- like access to SBU information by a subcontractor, at any tier, the same Federal Acquisition Regulation (FAR) and local security or safeguard clauses or provisions for protecting SBU information or information systems that apply to and are incorporated in its prime contract with IRS. IRS Publication 4812 also applies to subcontractors.

15. Information System and Information Security Control Standards and Guidelines Applicability (APR 2024)

As part of its information security program, IRS identifies security controls for the organization’s information and information systems in the following two key standards and guiding documents:

- Internal Revenue Manual (IRM) 10.8.1 – Information Technology (IT) Security, Policy and Guidance, and
- Publication 4812 – Contractor Security & Privacy Controls.

While IRM 10.8.1 and Publication 4812 are both based on the latest version

of NIST SP 800- 53, they apply to different operating environments—internal and external to the organization, respectively.

The contractor, by signing its offer, hereby asserts to the best of its knowledge and belief that the security control guideline(s) most suitable and applicable to the immediate contracting action, with due consideration to its proposed approach (and work environment) for fulfilling the Government's requirements and standards for applicability described herein, is as follows (check only one block):

☐ IRM 10.8.1 ☐ Publication 4812 ☐ Both IRM 10.8.1 and Publication 4812

Unless IRS Cybersecurity, (Contractor Security Assessment - CSA) determines, through a notification to the Contractor by the CO, that a different (or a second) security control standard or guideline is warranted, the security level selected/applied for by the contractor under IR1052.239-9010 shall stand. In the event IRS Cybersecurity (Contractor Security Assessment - CSA) determines a different (or second) security control standard or guideline is warranted, the CO shall advise the contractor, in writing, of the Government determination, and reflect the correct/appropriate security control standard or guideline in the ensuing contract.

a. If Publication 4812 is selected (alone or in combination with IRM 10.8.1) as the most suitable security control guideline, the Contractor must identify, as part of its proposal submissions (or its submissions under any modification to an existing contract incorporating this clause), the most suitable security control level within the following hierarchy of security control levels (from lowest or highest):

- Software Application Development or Maintenance (SOFT)
- Networked Information Technology Infrastructure (NET)

(See Publication 4812, Appendix C for guidance in selecting the security control level most suitable and appropriate to the immediate contracting action. If additional guidance is needed in selecting the security control level, contact IRS Cybersecurity (Contractor Security Assessment - CSA).

b. The contractor, by signing its offer, hereby asserts to the best of its knowledge and belief that the security control level under Publication 4812 most suitable and applicable to the immediate contracting action, with due consideration to its proposed approach (and work environment) and standards for applicability described herein, is as follows (check only one):

☐ SOFT ☐ NET

c. Unless IRS Cybersecurity (Contractor Security Assessment - CSA) determines that a different (higher or lower) security control level is warranted for contracts subject to the most recent version of Publication 4812, the security level selected/applied for by the contractor will govern throughout the life of the contract. In the event the IRS Cybersecurity (Contractor Security Assessment - CSA) determines a different (higher or lower) security level is warranted, the CO will advise the contractor, in writing, of the Government determination. At the end of the contract, for all security levels, the contractor must provide a plan and document the implementation of this plan to ensure that all hard copy and electronic data is returned to the IRS, sanitized, or destroyed.

d. Failure by the contractor to check any block will result in the use of both guidelines (for the Publication 4812 portion, use of the most stringent security control level (Software)) until and unless IRS Cybersecurity (Contractor Security Assessment - CSA), determines otherwise via notification to the Contractor by the CO.

e. If required by the Contracting Officer's Representative (COR), the contractor will be required to input data into a system, to be defined by the IRS, to describe the security controls being used to protect information.

f. Flow down of clauses. The contractor shall include and flow down, in its subcontracts (or arrangements or outsourced service agreements) that entails staff- like access to SBU information by a subcontractor, at any tier, the substantially same Federal Acquisition Regulation (FAR) and local security or safeguard clauses or provisions for protecting SBU information or information systems that apply to and are incorporated in its prime contract with IRS.

16. Post Award Evaluation of Contractor Performance (JUN 2020)

Interim and final evaluations of contractor performance will be prepared on this contract in accordance with FAR [42.15](#). The Assessing Official (e.g., Contracting Officer) will prepare a final performance evaluation at the time the work on the contract is completed. In addition to the final evaluation, interim evaluations will be prepared annually to coincide with the anniversary date of the contract. (**If evaluations are conducted annually, modify the above sentence appropriately.)

The past performance evaluation process is a paperless process using the Contractor Performance Assessment Reporting System (CPARS). CPARS is a web-based system that allows for electronic processing of the performance evaluation report. The completed evaluation was previously available in the Past Performance Information Retrieval System (PPIRS), but since the General Services Administration officially retired PPIRS and merged it with CPARS, it created “a single system” that “provides one location and one account to perform functions such as creating and editing performance and integrity records, changes to administering users, running reports, generating performance records, and viewing/managing performance records.

Once the Contractor is registered in CPARS, they will receive an automatically-generated email with detailed login instructions. Further details, systems requirements, and training information for CPARS is available at <https://www.cpars.gov/> The CPARS User Manual, registration for Online Training for Contractors, and a practice application may be found at this site as well.

Interim and final evaluations will be provided to the Contractor for their review and comment as soon as practicable after completion of the evaluation. Evaluations of contractor past performance will be posted to the relevant past performance database no more than 14 days after the information is provided to the contractor. On day 15, whether the contractor has responded or not, the evaluation automatically posts to PPIRS. If the Contractor elects not to provide comments, they should acknowledge receipt of the evaluation by indicating "No comment" and then sign and date the form. If the Contractor does not sign and submit the form within 14 days, it will automatically be returned to the Government.

Contractors who disagree with a government evaluation can request to meet with the Contracting Officer to discuss their scores and provide feedback or justification for their performance. No requirement exists for the government to meet with the contractor; however, if a contractor requests a meeting, the government may accept the request.

Any such meeting does not alter the requirement that an evaluation be posted to PPIRS within 14 days.

Several avenues still exist for the contractor to influence the review. First, the contractor may submit a comment after the 14-day period expires and the review has been posted to PPIRS. The contractor's late comments must be

posted to PPIRS; however, the government's original report will still be available to all source selection officials.

Although authorized, an agency is not required to modify its evaluation based upon a contractor's comments. Second, the contractor may appeal its review one level above the Contracting Officer to the Reviewing Official. Again, the appeal does not stop the 14- day reporting period and the original evaluation will be posted on PPIRS.

The following guidelines apply concerning the Contractor's use of the past performance evaluation:

- Protect the evaluation as "source selection information." After review, transmit the evaluation by completing and submitting the form through CPARS. If for some reason the Contractor is unable to view and/or submit the form through CPARS, contact the Contracting Officer for further instructions.
- Strictly control access to the evaluation within the Contractor's organization. Ensure the evaluation is never released to persons or entities outside of the Contractor's control.
- Prohibit the use of or reference to evaluation data for advertising, promotional material, pre- award surveys, responsibility determinations, production readiness reviews, or other similar purposes.
- A copy of the completed past performance evaluation will be available in CPARS for the Contractor's review and for Government use supporting source selection actions after it has been finalized.

C. TREASURY CLAUSES

This RFQ includes the following Department of the Treasury Acquisition Procedures (DTAP) and Department of Treasury Acquisition Regulation (DTAR) clauses and provisions.

1. IR1052.242-70 POSTAWARD CONFERENCE (JAN 2017)

- (a) A post-award conference will be held with the successful Quoter.
- (b) The post-award conference will be held via *conference call*. The Contracting Officer or authorized designee will provide the Contractor with the date and time

along with other pertinent information, including the agenda for the post-award conference.

(End of clause)

2. DTAR 1052.201-70 Contracting Officer's Representative (COR) Appointment and Authority (April 2015)

(a) The COR is: TBD

(b) Performance of work under this contract is subject to the technical direction of the COR identified above, or a representative designated in writing. The term "technical direction" includes, without limitation, direction to the contractor that directs or redirects the labor effort, shifts the work between work areas or locations, and/or fills in details and otherwise serves to ensure that tasks outlined in the work statement are accomplished satisfactorily.

(c) Technical direction must be within the scope of the contract specification(s)/work statement. The COR does not have authority to issue technical direction that:

(1) Constitutes a change of assignment or additional work outside the contract specification(s)/work statement;

(2) Constitutes a change as defined in the clause entitled "Changes";

(3) In any manner causes an increase or decrease in the contract price, or the time required for contract performance;

(4) Changes any of the terms, conditions, or specification(s)/work statement of the contract;

(5) Interferes with the contractor's right to perform under the terms and conditions of the contract; or

(6) Directs, supervises or otherwise controls the actions of the Contractor's employees.

(d) Technical direction may be oral or in writing. The COR must confirm oral direction in writing within five workdays, with a copy to the Contracting Officer.

(e) The Contractor shall proceed promptly with performance resulting from the technical direction issued by the COR. If, in the opinion of the Contractor, any direction of the COR or the designated representative falls within the limitations of (c) above, the Contractor shall immediately notify the Contracting Officer no later than the beginning of the next Government work day.

(f) Failure of the Contractor and the Contracting Officer to agree that technical direction is within the scope of the contract shall be subject to the terms of the clause entitled "Disputes."

(End of Clause)

3. DTAR 1052.210-70 CONTRACTOR PUBLICITY (APR 2015)

The Contractor, or any entity or representative acting on behalf of the Contractor, shall not refer to the supplies or services furnished pursuant to the provisions of this contract in any news release or commercial advertising, or in connection with any news release or commercial advertising, without first obtaining explicit written consent to do so from the Contracting Officer. Should any reference to such supplies or services appear in any news release or commercial advertising issued by or on behalf of the Contractor without the required consent, the Government shall consider institution of all remedies available under applicable law, including 31 U.S.C. 333, and this contract. Further, any violation of this clause may be considered as part of the evaluation of past performance.

(End of clause)

4. DTAP 1052.224-70 Contract Publication (OCT 2018)

- (a) The Department of the Treasury (Treasury) may, at its sole discretion, publish this contract or portions thereof, including orders issued under the contract when deemed in the best interest of the Government.
- (b) To afford the Contractor an opportunity to review and propose redactions for any information contained in the Treasury contract that may be subject to a FOIA exemption, the Contractor may submit, within ten business (10) days from the date of award of this contract or any order issued under the contract—
 - (1) A pdf file of the fully executed contract or order that is suitable for publication and which includes all Contractor proposed redactions (e.g, trade secrets or any commercial or financial information that the Contractor believes to be privileged or confidential business information) and.
 - (2) A written statement identifying the portions of each proposed redactions, including the applicable exemption under the Freedom of Information Act (FOIA), [5 U.S.C. 552](#), and, in the case of FOIA Exemption 4, [5 U.S.C. 552\(b\)\(4\)](#), shall demonstrate why the information is considered to be a trade secret or commercial or financial information that is privileged or confidential.
- (c) Treasury will consider the Contractor's proposed redactions and associated grounds for nondisclosure prior to making a determination as to what information may be properly withheld for purposes of publication this contract or portions thereof.
- (d) The Contractor may submit a request to the CO for additional time to complete the action prescribed by paragraph (b) of this clause. The lack of action by the Contractor will be deemed by the Government as there being no information in the Treasury contract subject to a FOIA exemption.
- (e) Information provided by the Contractor in response to this clause may itself be subject to disclosure under the FOIA.

(f)

(End of clause)

**D. FISMA Contract Language (IT Systems / Applications or Services) Revised
April 2020**

**INFORMATION SECURITY / FEDERAL INFORMATION SECURITY
MODERNIZATION ACT (FISMA)**

Pursuant to the Federal Information Security Modernization Act (FISMA), Title III of the E-Government Act of 2014 (Pub. L. 113–283), the contractor shall provide minimum security controls required to protect Federal information and information systems in accordance with NIST Special Publication 800-53 Rev. 4, Security and Privacy Controls for Federal Information Systems and Organizations. The contractor shall provide a risk-based process for selecting the security controls necessary to satisfy the minimum-security requirements in accordance with Federal Information Processing Standard (FIPS) 199. The term *information security* means protecting information and information systems from unauthorized access, use, disclosure, disruption, modification, or destruction in order to provide confidentiality, integrity and availability. An *information system* is a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information. Information resources include information and related resources, such as personnel, equipment, funds, and information technology.

The contractor shall provide information security protections commensurate with the risk and magnitude of the harm resulting from the unauthorized access, use, disclosure, disruption, modification, or destruction of information collected or maintained by or on behalf of the agency; or information systems used or operated by an agency or by a contractor or subcontractor of an agency. This applies to individuals and organizations having contractual arrangements with the IRS, including employees, contractors, vendors, and outsourcing providers, which use or operate information technology systems containing IRS data.

IRS information or information system with a FIPS 199 security categorization impact level of low, moderate or high, and those systems identified by the As Built Architecture (ABA) and agency FISMA Master Inventory.

The potential impact values for confidentiality, integrity, and availability may not always be the same for a particular information system; the high-water mark concept must be used to determine the overall impact level of the information system. Thus, a *low-impact*

system is an information system in which all three of the security objectives are low. A *moderate-impact system* is an information system in which at least one of the security objectives is moderate and no security objective is greater than moderate. And finally, a *high-impact system* is an information system in which at least one security objective is high. The determination of information system impact levels must be accomplished prior to the consideration of minimum-security requirements and the selection of appropriate security controls for those information systems.

FedRAMP security requirements shall be apply to all IRS cloud services and products and shall be implemented and complied with as part of FedRAMP.

The enforcement of FedRAMP requirements shall be done through Service Level Agreements (SLA)/Contracts. IRS shall utilize aggregated and individual security categorization information when assessing interagency and CSP connections with different FIPS 199 Category Impact levels. (e.g., High Impact system connecting to Moderate Impact system etc.)

THE NATIONAL INSTITUTE OF STANDARDS AND TECHNOLOGY (NIST) GUIDANCE FOR INFORMATION SECURITY

The contractor shall follow Information Security guidance established by the National Institute of Standards and Technology (NIST). The contractor shall establish the minimum-security controls identified in NIST Special Publication 800-53 Rev. 4, Security and Privacy Controls for Federal Information Systems and Organizations for FISMA compliance. The contractor shall follow the best practices and guidance established by NIST special publication 800 Series and Federal Information Processing Standards (FIPS) for computer security. The IRS may determine such applicable Information Technology (IT) Security standards and policies.

Office of the President Management and Budget (OMB) Policies for Security of Federal Automated Information Resources

The contractor shall implement protections for personally identifiable information being accessed remotely or transported outside of the agency's secured, physical perimeter, and/or stored offsite. In those instances where personally identifiable information is transported to a remote site of the contractor, the contractor shall implement NIST Special Publication 800-53 Rev. 4, Security and Privacy Controls for Federal Information Systems and Organizations security controls and IRS specific security procedures to ensure that information is transported in encrypted form. The contractor

shall comply with OMB Circular Policy M-17-12: Preparing for and Responding to a Breach of Personally Identifiable Information.

TREASURY / IRS POLICIES FOR INFORMATION TECHNOLOGY (IT) SECURITY

The contractor shall comply with FedRAMP Framework, Department of Treasury Directive TD P 85-01, Internal Revenue Manual (IRM) 10.8.1, Information Technology (IT) Security Policy and Guidance and Internal Revenue Manual (IRM) 10.8.24, Information Technology (IT) Security, Cloud Computing Security Policy. The contractor shall comply with IRS IRMs when developing or administering IRS information and information systems.

The contractor shall comply with the Taxpayer Browsing Protection Act of 1997 - Unauthorized Access (UNAX), the Act amends the Internal Revenue Code 6103 of 1986 to prevent the unauthorized inspection of taxpayer returns or tax return information.

The contractor/contractor personnel are bound by the Records Management by Federal Agencies (44 U.S.C. Chapter 31) regarding the care and retention of federal records.

FEDERAL INFORMATION PROCESSING STANDARD (FIPS)-201-2

Homeland Security Presidential Directive-12 [HSPD-12], August 27, 2004, established the requirements for a common identification standard for identity credentials issued by Federal departments and agencies to Federal employees and contractors (including contractor employees) for gaining physical access to federally controlled facilities and logical access to federally controlled information systems. HSPD-12 directs the Department of Commerce to develop a FIPS publication to define such a common identity credential. In accordance with HSPD-12, this Standard defines the technical requirements for the identity credential that:

- (a) is issued based on sound criteria for verifying an individual employee's identity; (b) is strongly resistant to identity fraud, tampering, counterfeiting, and terrorist exploitation;
- (c) can be rapidly authenticated electronically; and
- (d) is issued only by providers whose reliability has been established by an official accreditation process.

The standard for a Personal Identity Verification (PIV) system is based on secure and reliable forms of identity credentials issued by the Federal government to its contractors. These credentials are intended to authenticate individuals who require access to federally controlled facilities, information systems, and applications. A PIV Card must be personalized with identity information for the individual to whom the card is issued, in order to perform identity verification both by humans and automated systems. Humans

can use the physical card for visual comparisons, whereas automated systems can use the electronically stored data on the card to conduct automated identity verification. IRS will determine the level of security and authentication mechanisms appropriate for their applications and will employ only information technology products on the FIPS 201-approved products list for PIV capability implementation within organization information systems. CSPs must review SP 800-63-3, use its decision trees to obtain an overview of all digital identity requirements, and read the applicable 800-63 volumes to determine specific requirements that apply to their cloud offerings.

SECURITY AUTHORIZATION / CERTIFICATION AND ACCREDITATION PROCESS

CSP/Contractor systems that collect, maintain, contain or use agency information or an information system on behalf of the agency (a General Support System (GSS), with a FIPS 199 security categorization) must ensure annual reviews and continued security certification and accreditation. Some of the key elements of this IT risk and impact assessment process are project security deliverables such as the System Security Plan (SSP), Information System Contingency Plan (ISCP), Interconnection Security Agreement (ISA), Security Risk Assessment (SRAs), Data Impact Assessments (DIAs), Risk Analyses, Security Threat Analyses, Audit Plan, Source Code Review, Security Control Assessment (SCA), and/or Event-Driven Security Control Assessment (ED-SCA). All systems that complete this process will, at a minimum, meet FedRAMP, Treasury and IRS requirements.

INFORMATION SYSTEMS AND INFORMATION SECURITY CONTROLS FOR CONTRACTING ACTIONS SUBJECT TO IRS PUBLICATION 4812 REVISION 10-201

(Note: Publication 4812 is a layperson's guide to NIST SP 800-53, Rev 4 when access to IRS information or information systems under contracts for services on behalf of the IRS is outside of IRS controlled facilities or the direct control of the Service as opposed to Internal Revenue Manual 10.8.1 - Information Technology (IT) Security, Policy and Guidance, which applies when contractors are accessing IRS information and information systems at Government controlled facilities.)

In performance of this contract, the contractor agrees to comply with the following requirements and assumes responsibility for compliance by its employees and subcontractors (and their employees):

(a) *General*. The contractor shall ensure IRS information and information systems (those of the IRS and/or the contractor, as appropriate) are always protected. In order to do so, the contractor shall develop, implement, and maintain effective controls and methodologies in its business processes, physical environments, and human capital or personnel practices that meet or otherwise adhere to the security controls,

requirements, and objectives described in applicable security control guidelines, and their respective contracts.

(b) The contractor will be required to input data into a system, to be defined by the IRS, to describe the security controls being used to protect information.

(c) *Publication (PUB) 4812 Applicability*. This contracting action is subject to Publication 4812 – Contractor Security Controls. PUB 4812 is available at:
<http://www.irs.gov/pub/irs-procure/Publication-4812---Contractor--Security-Controls.pdf>.

CONTRACTOR (AND SUBCONTRACTOR) SITE AND INFORMATION TECHNOLOGY (SOFTWARE, HARDWARE AND DATA) LOCATION

The CSP/Contractor headquarters, infrastructure, servers (including back-up servers) and data must be physically located in the United States (or U.S. territories).

The infrastructure associated with services outsourced by the CSP/Contractor must be located in the United States (or U.S. territories).

The current version and all subsequent versions of the software implemented by the CSP/Contractor must be escrowed in the United States (or U.S. territories) at the CSP's expense to protect the code in the event the CSP declares bankruptcy.

Data stored outside the United States cannot be protected under the Privacy Act of 1974 or safe harbor framework and may allow for certain local or foreign law enforcement authorities to search IRS data pursuant to a court order, subpoena, or informal request outside the control of the IRS.

The Clarifying Lawful Overseas Use of Data ("CLOUD") Act enacted into law on March 23, 2018 provides that U.S. law-enforcement orders issued under the Stored Communications Act (SCA) may reach certain data located in other countries.

Recognizing the limits of existing law enforcement tools and privacy laws to govern requests for electronic evidence in the age of cloud computing, the CLOUD Act establishes processes and procedures for law enforcement requests for data in other countries.

Although the Act expands the geographic scope of the SCA, it does not change who is subject to SCA orders or what type of data is subject to U.S. law-enforcement requests under the SCA.

The CLOUD Act lays out the circumstances under which a "provider of electronic communication service or remote computing service" must comply with a U.S. law-enforcement order to disclose data within its "possession, custody, or control," even when that data is "located ... outside the United States."

ALTERNATE STORAGE

The CSP/Contractor shall establish an alternate storage site including necessary agreements to permit the storage and retrieval of information system backup information. The alternate storage site shall be geographically separated within the United States (or U.S. territories) from the contractor site to enable recovery of operations. The alternate storage site is separated from the primary storage site so as not to be susceptible to the same hazards and identify potential accessibility problems to the alternate storage site in the event of an area-wide disruption or disaster and outlines explicit mitigation actions. All backup data that contains SBU information shall be encrypted. The alternate storage site shall provide information security safeguards equivalent to that of the primary site.

BACKUPS

Backups must be provided as part of the CSP service offering. All backup data that contains SBU information shall be encrypted.

(1) The IRS or CSP/Contractor shall conduct backups for information contained in the information system at the following frequency:

- User-level: daily incremental; weekly full
- System-level: daily incremental; weekly full
- Information system configuration; daily incremental; weekly full

Note: The defined backup frequencies are above IRM 10.8.1 baseline and assigned by FedRAMP.

(2) The CSP/Contractor shall maintain:

- At least three backup copies of user-level information (at least one of which is available online) or provides an equivalent alternative.
- At least three backup copies of system-level information (at least one of which is available online) or provides an equivalent alternative.
- At least three backup copies of information system documentation including security information (at least one of which is available online) or provides an equivalent alternative.

Note: This requirement is defined by FedRAMP.

(3) The IRS or CSP/Contractor shall determine what elements of the cloud environment require the Information System Backup control.

Note: This requirement is defined by FedRAMP.

(4) The CSP/Contractor shall determine how Information System Backup is going to be verified and the appropriate periodicity of the check.

Note: This requirement is defined by FedRAMP.

(5) Backup copies of the operating system (i.e., deployed operating system with agency defined configurations and controls) and other critical information system software, as well as copies of the information system inventory (including hardware, software, and firmware components) shall be stored in a separate facility or in a fire-rated container that is not collocated with the operational system.

Note: This requirement is assigned to Moderate and High impact systems by FedRAMP.

DATA LOSS PREVENTION (DLP) SOFTWARE

The CSP/Contractor shall implement data loss prevention (DLP) software to assure existing software will operate effectively in the cloud.

The CSP/Contractor shall be responsible for all patching and vulnerability management (PVM) of software and other systems' components supporting services provided under this agreement so as to prevent proactively the exploitation of IT vulnerabilities that may exist within the CSP/Contractor operating environment. Such patching and vulnerability management shall meet the requirements and recommendations of NIST SP 800-40, as amended, with special emphasis on assuring that the vendor's PVM systems and programs apply standardized configurations with automated continuous monitoring of the same to assess and mitigate risks associated with known and unknown IT vulnerabilities in the CSP/Contractor operating environment.

Furthermore, the CSP/Contractor shall apply standardized and automated acceptable versioning control systems that use a centralized model to capture, store, and authorize all software development control functions on a shared device that is accessible to all developers authorized to revise software supporting the services provided under this agreement. Such versioning control systems shall be configured and maintained to make sure all software products deployed in the CSP/Contractor operating environment and serving the IRS are compatible with existing systems and architecture of the IRS.

USE OF OUTSOURCED / CONTRACTOR FACILITIES TO PROCESS IRS SBU DATA

The infrastructure associated with services outsourced by the CSP/contractor must be located in the United States (or U.S. territories).

If IRS products/applications/data/services/solutions are hosted and/or managed by a CSP

(outside the IRS network boundaries/facilities (e.g., outsourced) then all such certification, and meet all of the IRS unique business/legal requirements (including applicable requirements, etc.), products/applications/data/services/solutions shall go through (and maintain) the Federal Risk and Authorization Management Program (FedRAMP) certification, and meet all of the IRS unique business/legal requirements (including applicable PUB4812 requirements, etc.).

(Note: FedRAMP is mandatory for all IRS cloud deployments and cloud service model at the Federal Information Processing Standards (FIPS) 199 Low, Moderate and High impact levels. FedRAMP does not apply for internal housed IRS systems that are operated for IRS use only. This service model would be considered an On-Site-Private Cloud.) Special contract language shall be included in all types of Cloud Service Provider (CSP) contracts/non-disclosure agreements/Service Level agreements to address all potential CSP risks (e.g., Data Governance, Data Protection, Data Location, Data Availability, Data Confidentiality, Data Integrity, Data Access, Data Backup, Data Encryption, Data Breach Notification, Contract Exit Conditions, Contract Termination Conditions, Data Disposal, Data Retention, User/Device/Service AAA services (e.g., Authentication, Authorization, Audit Logging, Background Checks etc.). The Vendor shall pay special attention to the logical and physical separation of IRS data, application and communications to maintain security. Vendors are encouraged to manage any cloud environments containing IRS data with only other Federal or State and local Government customers operating at the same security level. The IRS shall control and maintain the centralized/authoritative control (in-house) of ALL the IRS authorized Users/Devices/Services Authentication, Authorization, and Auditing (AAA) functions, even if a particular IRS application/data/service/solution is hosted in a third-party cloud environment.

Outsourced operations shall report monthly for FISMA and Treasury submission. This includes all systems in the following environments: production, disaster recovery, training, development, and testing.

ENCRYPTION

(1) The IRS or CSP shall ensure that the information system implements FIPS-validated or National Security Agency (NSA)-approved cryptography in accordance with applicable federal laws, Executive Orders, directives, policies, regulations, and standards.

Note: This requirement is defined by FedRAMP.

IRS sensitive data (e.g., Sensitive But Unclassified (SBU), Personally Identifiable Information (PII) that is processed, stored, or transmitted by an information system outside of IRS facilities or IRSIT information system shall be protected with FIPS 140-2 or later validated cryptographic modules with approved modes of operation. The vendor shall provide a system that implements (encryption standard) that provides for origin authentication, data integrity, and signer non-repudiation. Consider AU-11 audit Records retention. A list of NIST validated modules is available at the following link: <http://csrc.nist.gov/groups/STM/cmvp/validation.html>.

The CSP/Contractor shall ensure all SBU information is protected at rest, in transit, and in exchanges (i.e., internal and external communications). Limit access to SBU information to

authorized personnel (those favorably adjudicated and trained) with a need to know and ensure internal and external exchanges are conducted only through secure or encrypted channels. The CSP/Contractor shall employ encryption concepts and approved standards to ensure the confidentiality, integrity, and availability of the SBU information, consistent with the security controls under Publication 4812 and any security requirements specified elsewhere in the contract.

Contractual liability to the government only exists with the prime contractor.

The CSP/contractor shall retain operational configuration and control of data repository systems used to process and store government data to include any or remote work. The CSP/contractor shall not subcontract the operational configuration and control of any government data.

IRS retains exclusive ownership over all its data; the CSP/Contractor acquires no rights or licenses through the agreement, including intellectual property rights or licenses, to use the IRS data for its own purposes; and that the CSP/Contractor does not acquire and may not claim any interest in the data due to security. If CSP/Contractor moves data, the IRS will not lose rights and access to conduct audits.

Intellectual property, including original works created using the cloud infrastructure, may be stored. IRS must ensure that the cloud provider contract respects the IRS' right to any intellectual property or original works as far as possible without compromising the quality of service offered (e.g., backups may be a necessary part of offering a good service level).

CONTRACTOR SYSTEM REVIEW / SITE VISIT

In conjunction with the use of outsourced / Contractor facilities, the contractor shall be subject to at the option / discretion of the IRS, to periodically test and inspection (annually) and evaluate the effectiveness of information security controls and techniques. The assessment of information security controls may be performed by an agency independent auditor, security team or Inspector General, and shall include testing of management, operational, and technical controls, as indicated by the security plan, of every information system that maintain, collect, operate or use federal information on behalf of the agency. The agency and contractor shall document and maintain a remedial action plan, also known as a Plan of Action and Milestones (POA&M) to address any deficiencies identified during the test and evaluation. The contractor must cost-effectively reduce information security risks to an acceptable level within the scope, terms and conditions of the contract.

CONTRACTOR SYSTEM OVERSIGHT/COMPLIANCE

(a) The Contractor, service providers, and third-party vendors must complete the IRS Security –Assessments (IT Security Product Questionnaire) and submit the assessments to the Contracting Officer and Cybersecurity for review and evaluation. This is a supplemental requirement and does not replace contract requirements under FISMA. The federal government has the authority to conduct site reviews for compliance validation. Full cooperation by Contractor and third-party providers is required for audits and forensics.

(b) The Contractor must support IRS in its efforts to assess and monitor the Contractor systems and infrastructure. The Contractor must provide logical and physical access to the Contractor's facilities, installations, technical capabilities, operations, documentation, records, and databases upon request. The Contractor will be expected to perform automated scans and continuous monitoring activities which may include, but will not limited be to, authenticated and unauthenticated scans of networks, operating systems, applications, and databases and provide the results of the scans to the IRS Cybersecurity, or designate, or allow IRS (or its designate) to run the scans directly.

(c) All Contractor systems must participate in Information Security Continuous Monitoring (ISCM) and Reporting as defined in the IRS IT Policy.

(d) All Contractor systems must perform vulnerability scanning as defined by IRS IT Security Policy and provide scanning reports to the IRS Cybersecurity, or designate, on a monthly basis.

(e) All Contractor systems must participate in the implementation of automated security controls testing mechanisms and provide automated test results in Security Compliant Automation Protocol (SCAP) compliant data to the IRS Cybersecurity, or designate, on a monthly basis.

SAFEGUARDING / PROTECTING SENSITIVE PERSONALLY IDENTIFIABLE INFORMATION (PII)

Sensitive PII is defined as any information that permits the identity of an individual to be directly or indirectly inferred, including any information that is linked or linkable to that individual, regardless of whether the individual is a U.S. citizen, legal permanent resident, or employee or contractor to the Department. Sensitive PII is Personally Identifiable Information, which if lost, compromised, or disclosed without authorization, could result in substantial harm, embarrassment, inconvenience, or unfairness to an individual.

Information Systems can be either electronic or manual. IRM 10.8.1 requires IRS sensitive information is to be handled and protected at the contractor's site, including any information stored, processed, or transmitted using the contractor's computer systems. Contractor personnel shall perform a background investigation and/or clearance required; receive security awareness and specialized IT security training required for contractor activities or facilities; and any facility physical security requirements.

IRS sensitive data (e.g., Sensitive But Unclassified (SBU), Personally Identifiable Information (PII) that is processed, stored, or transmitted by an information system outside of IRS facilities or IRS IT information system shall be protected with FIPS 140-2 or later validated cryptographic modules with approved modes of operation.

A list of NIST validated modules is available at the following link:
<http://csrc.nist.gov/groups/STM/cmvp/validation.html>.

(1) The CSP/Contractor shall ensure that individuals accessing an information system processing, storing, or transmitting information requiring special protection satisfy the personnel screening criteria.

Note: This requirement is defined by FedRAMP.

(2) The organization shall:
Screen individuals prior to authorizing access to the information system; and

Rescreen individuals according to FedRAMP Assignments: for national security clearances; a reinvestigation is required during the 5th year for top secret security clearance, the 10th year for secret security clearance, and 15th year for confidential security clearance. For moderate risk law enforcement and high impact public trust level, a reinvestigation is required during the 5th year. There is no reinvestigation for other moderate risk positions or any low risk positions].

The CSP/Contractor shall ensure that data is used, only as identified, in the IRS contract and that the data will be used for nothing else to ensure the privacy of the individual.

The CSP/Contractor is responsible for maintaining an inventory of all PII provided to the contractor, generated by the contractor, or used by the contractor sufficient to enable notification to taxpayers, if disclosed. The inventory of PII must be updated semi-annually with a final inventory notification provided to the COR.

Most IRS information is categorized as Sensitive But Unclassified (SBU). This includes:

- (a) Federal Tax Information (FTI)
- (b) Personally Identifiable Information (PII)
- (c) Protected Health Information (PHI)
- (d) Certain procurement information
- (e) System vulnerabilities
- (f) Case selection methodologies
- (g) Systems information
- (h) Enforcement procedures
- (i) Investigation information
- (j) Proprietary processes or algorithms used in investigative work or tax processing

Note: Live data, which is defined as production data in use (production, testing, development), often contains SBU.

Various laws and regulations have addressed the need to protect sensitive information held by government agencies including the Federal Information Security Modernization Act (FISMA), the EGovernment Act of 2014, the Privacy Act of 1974, and OMB Circular A-130, Management of Federal Information Resources. FISMA requires agencies to have a security program and controls for systems to protect their sensitive information. Therefore, the contractor shall comply with OMB policies and Treasury / IRS specific policies, procedures or guidance to protect sensitive information.

CONTRACTOR RIGHTS TO ACCESS DATA

Access Control requirements shall be implemented as defined within Internal Revenue Manual (IRM) 10.8.1, Information Technology (IT) Security, Policy and Guidance and Publication 4812.

1) The CSP/Contractor shall not access, use, or disclose Government data unless specifically authorized by the terms of this contract or a task order issued hereunder. If authorized by the terms of this contract or a task order issued hereunder, any access to, or use or disclosure of, Government data shall only be for purposes specified in this contract or task order. CSP/Contractor shall ensure that each of its employees and representatives, and any others (e.g., subcontractor employees) performing duties hereunder, shall, prior to obtaining access to any Government data, sign a contract or task order specific nondisclosure agreement.

2) The CSP/Contractor shall use Government-related data only to manage the operational environment that supports the government data and for no other purpose unless otherwise permitted with the prior written approval of the Contracting Officer. CSP/Contractor shall:

a. Be subject to background investigations at the risk level appropriate to the sensitivity of the position and sensitivity/classification of the data.

b. Not access sensitive IT systems until they have at least a favorably adjudicated National Agency Check (a component of the full background investigation).

c. Be responsible for protecting any Personally Identifiable Information (PII) that they have in their possession, whether it is paper-based or in electronic form.

d. Understand the provisions and applicable criminal penalties under Public Law 105-35, Taxpayer Browsing Protection Act, shall also apply to all contractors and contractor employees.

e. Comply with all executive, legislative and Department of Treasury and IRS security policies and procedures.

f. Minimize the threat of viruses by write-protecting removable media, routinely scanning files, systems and media for viruses and never circumventing anti-virus safeguards.

A breach of the obligations or restrictions may subject the CSP/Contractor to criminal, civil, administrative, and contractual actions in law and equity for penalties, damages, and any other appropriate remedies by any party adversely affected by the breach.

HANDLING INFORMATION SECURITY INCIDENTS

The IRS Computer Security Incident Response Capability (CSIRC) defines a security incident as: “any adverse event whereby some aspect of computer security could be threatened. Adverse events may include the loss of data confidentiality, disruption of data or system integrity, disruption or denial of availability, loss of accountability, or damage to any part of the system.” User Compromise, Disclosure of Taxpayer/Sensitive Data, Malicious Code (successful or unsuccessful), Denial of Service (DoS) (successful or unsuccessful), Website Defacement, Identity Theft, Misuse of Resources or Policy Violation, Loss or Theft of IT Equipment, IRM/LEM Non- Compliance, Unauthorized Access Attempt, Probe/Scan, and any other security incident that may threaten or damage any IRS or federal agency information or information system(s).

Contractors and their employees must be aware of their responsibilities under the law to safeguard PII and sensitive information, the procedures to follow when data is lost or compromised and the penalties for unauthorized disclosure of PII and sensitive information. Contractors should refer to Data Breach Information for IRS Contractors on [irs.gov](https://www.irs.gov/about-irs/procurement/data-breach-information-for-irs-contractors) <https://www.irs.gov/about-irs/procurement/data-breach-information-for-irs-contractors>, Pub 4465-A, Protecting Federal Tax Information for Contractors, and Pub 4812, Contractor Security Controls, for information about a contractor’s responsibilities to protect Federal Tax Information (FTI) and incident/data breach response and reporting procedures.

It is critical to report an incident/data breach as soon as actionable information is available so a response/reaction can be initiated. Incident/data breach updates and any additional notifications to Treasury Inspector General for Tax Administration (TIGTA) and/or Local Law Enforcement can be completed after the initial report to the Office of Taxpayer Correspondence (OTC), Privacy, Governmental Liaison and Disclosure/Incident Management Office (PGLD/IM), or the Computer Security Incident Response Center (CSIRC) is submitted.

All physical security incidents and/or threats should be reported to the SAMC within 30 minutes of incident discovery. SAMC operates 365 days a year, 24 hours a day, seven days a week. Incidents may be reported to the SAMC through any of the following methods:

Primary Method of Reporting: Website incident reporting link,
<https://tscc.enterprise.irs.gov/irc/>

Alternate Reporting Methods:

Telephone: 202-317- 6124 or 1-866-216-4809 (toll free hotline)

Fax: 202-317-6129

Email: samc@irs.gov

The CSP/Contractor shall report security incident information according to U.S. Computer Emergency Response, Department of Treasury, IRS, and the FedRAMP Incident Communications procedures.

All incidents related to IRS processing, information or information systems shall be reported within one (1) hour to the CO, COR, and CSIRC. Contact the CSIRC through any of the following methods:

CSIRC Contacts: Telephone: 240.613.3606

E-mail to csirc@irs.gov

The CSP/Contractor shall be accountable for incident responsiveness, including providing specific time frames for restoration of secure services in the event of an incident.

The CSP/Contractor shall provide and maintain insurance, to include cybersecurity insurance, throughout the performance of this contract, as specified in the Schedule or elsewhere in the contract.

Before commencing performance under this contract, the CSP/Contractor shall provide proof of insurance to the Agency. The CSP/Contractor shall resubmit the proof of insurance within 30 days of notification of any material change that occurs during the performance of the contract.

The CSP/Contractor shall insert the substance of this clause, including this paragraph (c), in subcontracts under this contract that require work with or in support of storage and retrieval of electronic/digital government data and shall require subcontractors to provide and maintain the insurance required in the Schedule or elsewhere in the contract. The CSP shall maintain a copy of all subcontractors' proofs of required insurance and shall make copies available to the Contracting Officer upon request.

CONTRACTOR BOUNDARY PROTECTION

The CSP/Contractor shall ensure IRS data is not comingled with the data from other organizations.

The CSP/Contractor shall implement boundary protection mechanisms at servers, workstations, and mobile devices.

The CSP/Contractor shall isolate the information system from other internal information system components by implementing physically separate subnetworks with managed interfaces to other components of the system.

The CSP/Contractor shall define key information security tools, mechanisms, and support components associated with system and security administration and isolate those tools, mechanisms, and support components from other internal information system components via physically or logically separate subnetworks.

Note: These requirements are above the IRM 10.8.1 baseline and are assigned to Moderate-impact systems by FedRAMP

CLOUD SERVICE PROVIDER'S INFORMATION OUTPUT HANDLING AND RETENTION

The CSP/Contractor shall handle and retain data within the information system, according to record retention standards. The IRS shall identify the record retention standards to the contractor. In addition, once the contract expires, all data shall be returned to the IRS, unless specifically identified otherwise in the contract. No records shall be maintained, in paper or electronically, unless approved by the IRS COR. Once disposal is complete, a copy of the disposal record and notification must be provided to the IRS CO/COR.

JURISDICTION OVER IRS DATA AND CONTRACT TERMS DATA

The CSP/Contractor shall maintain all data within the United States (or U.S. territories). Jurisdiction over IRS data and contract terms must not be divided. The CSP/Contractor shall provide the IRS with a list of the physical locations which may contain government data. The CSP/Contractor shall provide information about the jurisdictions in which data may be stored and processed and any risks resulting from the location of those jurisdictions must be evaluated. The CSP/Contractor shall identify all data centers that the data at rest or data backup will reside.

The CSP will work with the Information Owner to understand the business rules for information/data store, collected in the Cloud.

DATA COLLECTED, PROCESSED AND TRANSFERRED

Data provided by the IRS and their customers must be collected, processed, and transferred in accordance with the contract terms established between the IRS and the cloud provider.

Sensitive But Unclassified (SBU) information, data, and/or equipment will only be disclosed to authorized personnel on a Need-To-Know basis. The CSP/Contractor shall ensure that appropriate administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, and/or equipment is properly protected. When no longer required, this information, data, and/or equipment will be returned to IRS control, destroyed, or held until otherwise directed. Destruction of items shall be accomplished by following NIST Special Publication 800-88, Guidelines for Media Sanitization.

The disposition of all data will be at the written direction of the COR, this may include documents returned to IRS control; destroyed; or held as specified until otherwise directed. Items returned to the IRS shall be hand carried or sent by certified mail to the COR.

The CSP/Contractor shall have adequate programs in place to protect the information received and information from unauthorized use, access, and disclosure. The CSP/Contractor programs for protecting information received must include documenting notification to employees and subcontractors (at any tier), who will have access to SBU information, the importance of protecting SBU information in general, and returns and return information, and information protected by the Privacy Act; in particular, the disclosure restrictions that apply and the criminal or civil sanctions, penalties, or punishments that may be imposed for unauthorized disclosure or inspection. Disclosure practices and the safeguards used to protect the confidentiality of information entrusted to the Government (and, as provided under the IRC and the Privacy Act) are subject to continual assessment and oversight to ensure their adequacy and efficacy.

DISPOSITION OF DATA

The delivery of data to the CSP/Contractor does not transfer any element of ownership; and, as between the customer and data host, the customer retains all right, title and interest in the data.

The CSP/Contractor role with respect to the data is limited to a storage function to fulfill its obligation to provide hosting services, and the CSP/Contractor will not interfere with the customer's access.

The CSP/Contractor is a "bailee for hire" with respect to the data (that is, a person compensated for holding the property as bailee).

The CSP/Contractor will delete or will return the customer's data in an agreed-upon format, at any time at the user's request.

The CSP/Contractor must provide the IRS CO/COR with a copy of the disposal record and notification once disposal is complete.

TERMINATION OF CONTRACT

At the end of the contract period, or if the contract is terminated within the contract period, the CSP/Contractor shall coordinate with the IRS to ensure contractor and contractor employee access privileges to IRS information, IRS systems and facilities are revoked in a timely manner, as necessary.

CSP/Contractor shall confirm to IRS officials that information furnished under the contract has been properly returned, disposed, or destroyed.

Information and IT assets shall be returned to the IRS, destroyed and/or sanitized, as required or directed by the IRS. This includes assuring the IRS that all IT assets, including laptops, information systems, servers, routers, printers, faxes, switches, voice recordings, and all removable and fixed media have been sanitized of all IRS information prior to returning into production for other use.

CSP/Contractor required to return IRS information and property (as a part of the contract requirements) shall use a process that ensures that the confidentiality of the SBU information is always protected during transport.

A log shall be maintained to ensure that all media destroyed has identified the date of destruction, content of media, serial number, type of media (CD, DVD, Closed Caption Television (CCTV), etc.) destruction performed, personnel performing destruction, and witness.

All VoIP shall be sanitized prior to returning to production, when SBU information is stored on these devices.

All hard drives and removable media shall be inventoried, sanitized, and logged to demonstrate data destruction for all IT assets used to handle SBU data.

All hard copies shall be returned using double-wrapped envelopes and traceable mail.

E-Discovery

In the event of litigation procedures, the CSP shall comply with any and all request to furnish informational data directly to the IRS for electronic discovery (E-discovery) purposes. The IRS shall have the authority to request hardcopy documents or electronically stored information (ESI) from the CSP that is relevant to any legal proceedings.

FOIA Request

The CSP shall not directly disclose any IRS owned data to a third-party requestor who is seeking information through the Freedom of Information Act (FOIA). All FOIA request regarding IRS information and information systems shall be processed directly by the IRS FOIA office. Third-party requestors must contact the respective FOIA public liaison for their state. This information can be found at the following:

<https://www.irs.gov/privacy-disclosure/irs-disclosure-offices>

PART III — SOLICITATION INSTRUCTIONS

1.0 GENERAL INSTRUCTIONS

Questions in response to this solicitation shall be submitted via e-mail to Dr. Carolyn Bennett at carolyn.d.bennett@irs.gov as soon as possible.

Unless amended, the contractor shall submit a complete quotation via email to carolyn.d.bennett@irs.gov in response to this RFP by **Monday, May 11, 2026 at 9:00 AM EDT**.

Only timely submissions will be considered. Non-conformance with the instructions or solicitation requirements provided may result in the Quoter being considered nonresponsive and removed from consideration for contract award. The Quotation must affirmatively state that it will remain valid for at least 90 calendar days from the date of submission.

The quotation submission shall contain the following volumes:

1. Completed Provisions (highlighted) as required by Part II of this solicitation
2. Technical Quotation
3. Price Quote

2.0 TECHNICAL QUOTATION (20 Page Limit)

No cost or prices shall be included in the Technical Volume. The Technical Volume must support the pricing submitted in the Price Quote.

The Technical volume shall consist of the following:

1. Executive Summary (2 Page Limit)
2. Technical Approach (16 Page Limit)
3. Past Performance (2 Page Limit)
4. Quality Control Plan (Included in Technical Approach Limit)

Executive Summary

Identify points of contact authorized to negotiate, SAM UEI number and socio-economic status. Include acknowledgement of all amendments, a concise narrative summary of the entire Quotation, including significant risks, and a highlight of any key or unique features, excluding Price. The salient features shall tie in with the evaluation factors. Any summary material presented here shall not be considered as meeting the requirements for any portion(s) of other volumes of the quotation.

Technical Approach

The Contractor shall describe its technical approach to fulfill the requirements as described in this Performance Work Statement and in accordance with the terms and conditions set forth in this solicitation. All tasks and requirements described in the Performance Work Statement must be addressed.

Quality Control Plan (Part of Technical Approach)

The Contractor must submit a Quality Control Plan (QCP) in their response to the Quality Assurance Surveillance Plan (QASP) as specified within Attachment 1 of the RFQ. The QCP shall describe procedures to ensure quality at every stage and for every task. The Quality Control Plan will be evaluated to ensure the contractor has the appropriate measures in place to ensure the contractor is meeting the performance standards/quality levels identified in the PWS, QASP and Performance Requirements throughout the life of the contract.

Past Performance

The quoter shall demonstrate successful past performance by submitting two (2) past performance profiles working on projects of similar size, scope, and complexity as outlined in the PWS over the past three (3) years.

3.0 PRICE QUOTE (No Page Limit)

The price quote shall be firm, fixed-price and take into account all tasks and requirements as described in the Performance Work Statement. A total price, inclusive of the base period and each option period shall be included in the Quoter's price quote. Excel is the only acceptable format for the price Quotation submission.

PART IV – TECHNICAL ACCEPTANCE CRITERIA AND BASIS FOR AWARD

TECHNICAL ACCEPTANCE CRITERIA

Award will be based on the lowest priced technically acceptable (LPTA) quote.

To be deemed technically acceptable the quoter must:

- Provide a technical approach that demonstrates a clear understanding of the work to be performed.
- The technical Quotation shall outline an effective, efficient, achievable approach for accomplishing the work to be performed within the timelines specified.
- Provide two (2) past performance profiles

Quotations which do not demonstrate the capabilities of meeting the Section 508 requirements as part of their technical approach may not be considered for further evaluation of the remaining factors and therefore may be determined to be technically unacceptable for purposes of award.

BASIS FOR AWARD

The Quoter's quotation submission will be evaluated for Technical Approach and Past Performance approval. The evaluation will be conducted on a "Pass/Fail" evaluation basis by the Government. Meaning a proposed technical solution that is deemed advantageous and acceptable for the Government in the performance of its mission objectives.

The quoter will be evaluated under the following factors.

Factor 1: Technical Approach

Factor 2: Past Performance

Factor 3: Price

The Quotation submitted will receive “Pass/Fail” ratings for Technical Approach and Past Performance (also Neutral). Price will not receive an adjectival rating.

Factor 1 - Technical Approach

The IRS shall evaluate the contractor’s quotation to assess the degree to which the Contractor’s overall technical approach demonstrates the ability to perform the required services in the Performance Work Statement. Criteria for this Factor include but are not limited to:

- Demonstrating an understanding of the required FSIS stakeholder engagement and communications plan deliverables as described in the Performance Work Statement.
- Demonstrating the capability and capacity in performing the required tasks/services in the Performance Work Statement.
- Providing staff with skillsets that correspond to the required services in the Performance Work Statement.

Pass/Fail: _____

Pass/Fail Definition:

- a. Pass: The quoter has explicitly described how they can meet all of the requirements within the PWS.
- b. Fail: The quoter has not explicitly described how they can meet all of the requirements within the PWS.

Factor 2 – Past Performance

The quoter will be evaluated on their ability to demonstrate successful Past Performance working on projects of similar size, scope, and complexity as outlined in the PWS over the past three (3) years (may include current/ongoing projects). Past Performance shall be evaluated through the submission of two (2) past performance profiles.

Pass/Fail: _____

Pass/Fail Definition:

- a. Pass: The quoter demonstrated successful past performance by submitting two (2) past performance profiles working on projects of similar size, scope, and complexity as outlined in the PWS over the past three (3) years.
- b. Fail: The quoter did not demonstrate successful past performance by submitting two (2) past performance profiles working on projects of similar size, scope, and complexity as outlined in the PWS over the past three (3) years.
- c. Neutral: The quoter does not have a record of past performance working on projects of similar size, scope, and complexity as outlined in the PWS over the past two (3) years.

Factor 3 – Price:

The IRS will evaluate the submitted firm, fixed-price quote to determine if the quoter's labor mix, proposed labor hours, and overall price are realistic for the work to be performed, reflect a clear understanding of the requirements, and are consistent with the quoter's technical response. Price analysis will be used to verify that the overall firm, fixed price is fair and reasonable. Price will not receive an adjectival rating.

For purposes of evaluation, the total evaluated price shall include the base period (including pricing for each task), option periods (one option), to include the option under FAR 52.217-8, and all other costs or prices, as applicable.